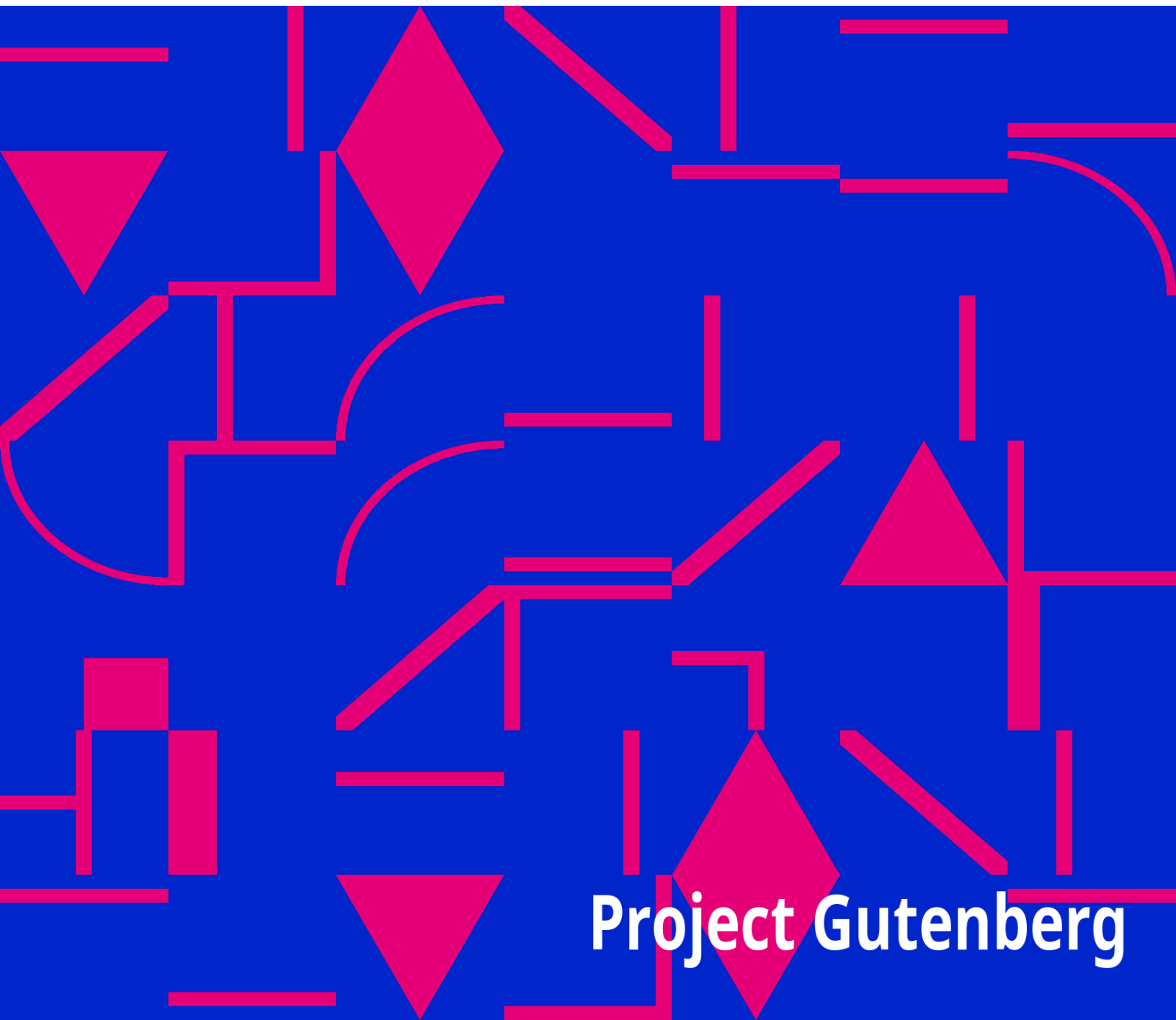


# Chambers's Edinburgh Journal, No. 435

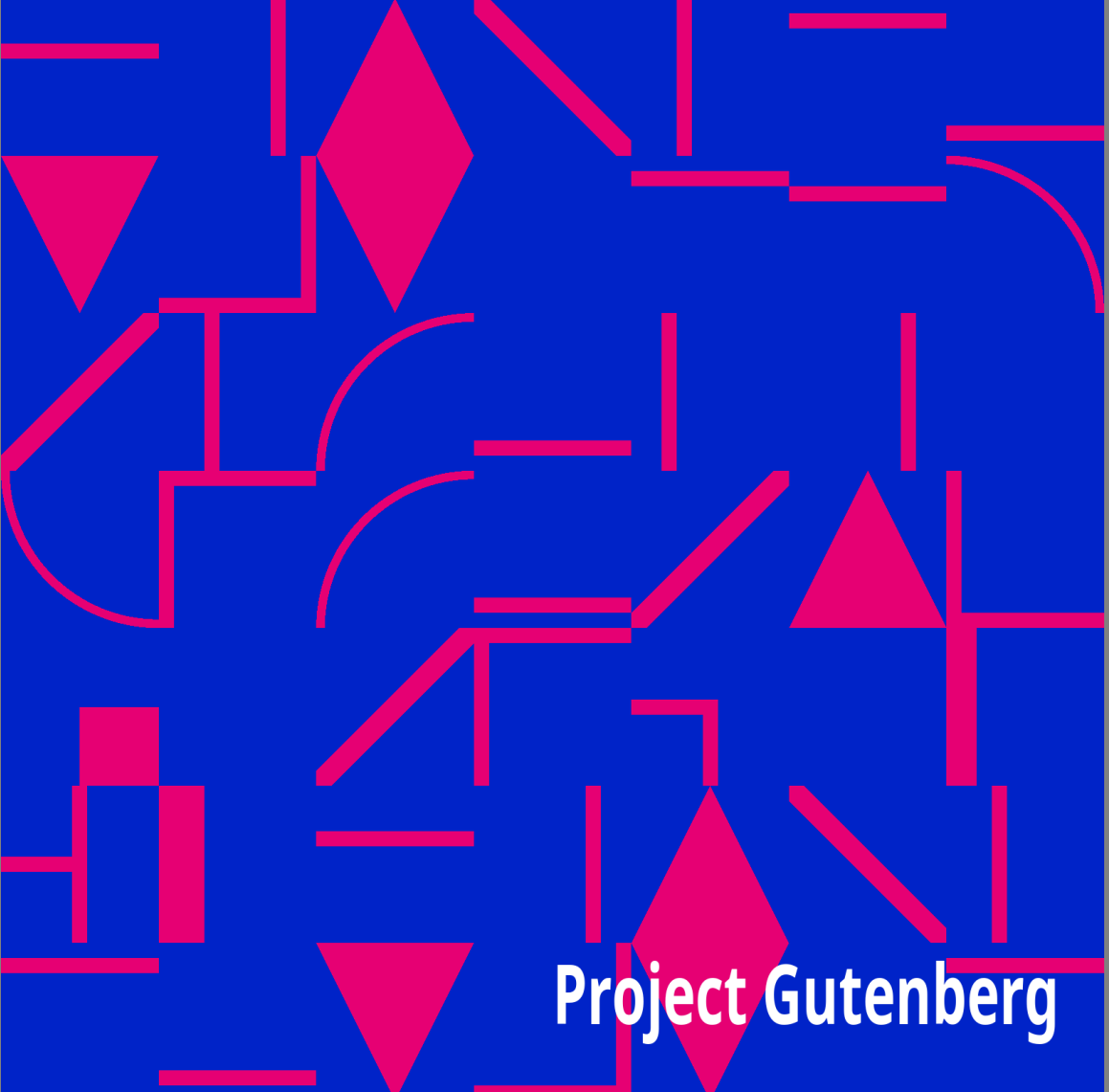
Various et al.

The background of the lower half of the image is a solid blue field. Overlaid on this field is a complex, abstract pattern of red geometric shapes. These shapes include various sizes of triangles, diamonds, squares, and lines, some of which are interconnected to form larger, more intricate structures. The pattern is dense and covers the entire blue area.

Project Gutenberg

# Chambers's Edinburgh Journal, No. 435

Various et al.

The lower half of the image features a vibrant blue background adorned with a complex, abstract pattern of red geometric shapes. These shapes include various line segments, squares, rectangles, triangles, and diamonds, some of which are nested or overlapping. The pattern is dense and non-repeating, creating a visually stimulating effect. The text 'Project Gutenberg' is overlaid on the bottom right of this patterned area.

Project Gutenberg

## **The Project Gutenberg eBook of Chambers's Edinburgh Journal, No. 435**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Chambers's Edinburgh Journal, No. 435

Author: Various

Editor: Robert Chambers  
William Chambers

Release date: July 7, 2006 [eBook #18775]

Language: English

Other information and formats: [www.gutenberg.org/ebooks/18775](http://www.gutenberg.org/ebooks/18775)

Credits: Produced by Malcolm Farmer, Richard J. Shiffer and the  
Online Distributed Proofreading Team at <http://www.pgdp.net>.

\*\*\* START OF THE PROJECT GUTENBERG EBOOK CHAMBERS'S  
EDINBURGH JOURNAL, NO. 435 \*\*\*

# **CHAMBERS' EDINBURGH JOURNAL**

## **CONTENTS**

**FORCED BENEFITS.**

**MONSIEUR JEROME AND THE RUSSIAN PRINCESS.**

**MEMOIRS OF LORD JEFFREY.**

**THE MOONLIGHT RIDE.**

**THE GOLD-FEVER IN AUSTRALIA.**

**BURGOMASTER LAW IN PRUSSIA.**

**TRACES OF THE DANES AND NORWEGIANS IN ENGLAND.**

**CHILDREN OF PRISONS.**

**JUPITER, AN EVENING STAR.**

**GRATUITOUS SERVICES.**



**CONDUCTED BY WILLIAM AND ROBERT CHAMBERS,  
EDITORS OF 'CHAMBERS'S INFORMATION FOR THE PEOPLE,'  
'CHAMBERS'S EDUCATIONAL COURSE,' &c.**

---

**NO. 435. NEW SERIES.**

**SATURDAY, MAY 1, 1852.**

**PRICE 1½d.**

---

## FORCED BENEFITS.

[Return to Table of Contents](#)

The maxim, that men may safely be left to seek their own interest, and are sure to find it, appears to require some slight qualification, for nothing can be more certain, than that men are often the better of things which have been forced upon them. Those who advocate the idea in its rigour, forget that there are such things as ignorance and prejudice in the world, and that most men only become or continue actively industrious under the pressure of necessity. The vast advantages derived from railway communication afford a ready instance of people being benefited against their will. At the bare proposal to run a line through their lands, many proprietors were thrown into a frenzy of antagonism; and whole towns petitioned that they might not be contaminated with the odious thing. In spite of remonstrances, and at a vast cost, railways were made; and we should like to know where opponents are now to be found. Demented land-proprietors are come to their senses; and even recalcitrant Oxford is glad of a line to itself.

Cases of this kind suggest the curious consideration, that many remarkable benefits now experienced were never sought for or contemplated by the persons enjoying them, but came from another quarter, and were at first only grudgingly submitted to. A singular example happens to call our attention. There is a distillery in the west of Scotland, where it has been found convenient to establish a dairy upon a large scale, for the purpose of consuming the refuse of the grain. Seven hundred cows are kept there; and a profitable market is found for their milk in the city of Glasgow. That the refuse of the cow-houses might be applied to a profitable purpose, a large farm was added to the concern, though of such land as an amateur agriculturist would never have selected for his experiments. Thus there was a complete system of economy at this distillery: a dairy to convert the draff into milk, and a farm to insure that the soil from the cows might be used upon the spot. But, as is so generally seen in this country, the liquid part of the refuse from the cow-houses was neglected. It was allowed to run into a neighbouring canal; and the proprietors would have been contented to see it

so disposed of for ever, if that could have been permitted. It was found, however, to be a nuisance, the very fishes being poisoned by it. The proprietors of the canal threatened an action for the protection of their property, and the conductors of the dairy were forced to bethink them of some plan by which they should be enabled to dispose of the noxious matter without injury to their neighbours. They could at first hit upon no other than that of carting away the liquid to the fields, and there spreading it out as manure. No doubt, they expected some benefit from this procedure; and, had they expected much, they might never have given the canal company any trouble. But the fact is, they expected so little benefit, that they would never have willingly taken the trouble of employing their carts for any such purpose. To their surprise, the benefit was such as to make their lean land superior in productiveness to any in the country. They were speedily encouraged to make arrangements at some expense for allowing the manure in a diluted form to flow by a regular system of irrigation over their fields. The original production has thus been *increased fourfold*. The company, finding no other manure necessary, now dispose of the solid kind arising from the dairy, among the neighbouring farmers who still follow the old arrangements in the management of their cows. The sum of L.600 is thus yearly gained by the company, being not much less than the rent of the farm. If to this we add the value of the extra produce arising from the land, we shall have some idea of the advantage derived by this company from having been put under a little compulsion.

An instance, perhaps even more striking, was supplied a few years ago by certain chemical works which vented fumes noxious to a whole neighbourhood. Being prosecuted for the nuisance, the proprietors were forced to make flues of great length, through which the fumes might be conducted to a considerable distance. The consequence was surprising. A new kind of deposit was formed in the interior of the flues, and from this a large profit was derived. The sweeping of a chimney would sometimes produce several thousand pounds. At the same time, nothing can be more certain than that this material, but for the threat of prosecution, would have been allowed to continue poisoning the neighbourhood, and, consequently, not yielding one penny to the proprietors of the works.<sup>[1]</sup>

It has pleased Providence to order that from all the forms of organic life there shall arise a refuse which is offensive to our senses, and injurious to health, but calculated, under certain circumstances, to prove highly beneficial to us. The offensiveness and noxiousness look very much like a direct command from the Author of Nature, to do that which shall turn the refuse to a good account—namely, to bury it in the earth. Yet, from sloth and negligence, it is often allowed to cumber the surface, and there do its evil work instead. An important principle is thus instanced—the essential identity of Nuisance and Waste. Nearly all the physical annoyances we are subjected to, and nearly all the influences that are operating actively for our hurt, are simply the exponents of some chemical solecism, which we are, through ignorance or indifference, committing or permitting. There is here a double evil—a positive and a negative. When the Londoner groans at the smokiness of his streets, and the particles of soot he finds spread over his shirt, his toilet-table, and every nice article of furniture he possesses, he has the additional vexation of knowing, that the smoke and soot should have been serving a useful purpose as fuel. When he passes by a railway over the tops of the houses in some mean suburb, and looks down with horror and disgust on the pools and heaps of filth which are allowed to encumber the yards, courts, and narrow streets of these localities, to the destruction of the health of the inhabitants, he has a second consideration before him, that all these matters ought to be in the care of some easy-acting system, by which, removed to the fields, they should be helping to create the means of life, instead of death. We never can look upon a great factory chimney pouring forth its thick column of smoke, without a twin grief—for the disgust it creates, and the good that is lost by it. Properly, that volatile fuel should be doing duty in the furnace, and effecting a saving to the manufacturer, instead of rendering him and his concerns a nuisance to all within five miles.

Troublesome as these nuisances are, there is such an inaptitude to new plans, that they might go on for ever, if an interference should not come in from some external quarter. It matters little whence the interference comes, so that the end be effected. We cannot, however, view the proceedings of a Board of Health in ordering cleanly arrangements, or those of a municipal council putting down factory smoke, without great interest, for we think we there see part, and an important one too, of the great battle of Civilisation



against Barbarism. And this interest is deepened when we observe the benefits which Barbarism usually derives from its own defeats. The factory-owner, for instance, will find that, in applying an apparatus by which smoke may be prevented, he will not merely be sparing his neighbours a great annoyance, but economising fuel to an extent which must more than repay the outlay. By repressing nuisance, he will be in the same measure repressing waste.<sup>[2]</sup> Were there, in like manner, a general measure for enforcing the removal of refuse from the neighbourhood of human habitations, the rate-payers would in due time see blessed effects from the compulsion to which they had been subjected. Their groans would be succeeded by gladness, and they would thank the legislators who had slighted their remonstrances. When the cholera approached in 1849, our British Board of Health ordered a general cleaning out of stables, and a daily persistence in the practice. It was complained of as a great hardship; but the Board ascertained that owners of valuable race-horses cause their stables to be thoroughly cleaned daily, as a practice necessary for the health of the animals; the Board, therefore, very properly insisted on forcing this benefit upon the proprietors of horses generally. Can we doubt that a similar policy might be followed with the like good consequences at all times, and with regard to the habitations of men as well as horses?

It would thus appear, that men may really be allowed a too undisturbed repose in their views and maxims, and, if always left to seek their own interests, would often fail to find the way. If, indeed, it were true that men are sure to find out their own interest, no country should be behind another in any of the processes or arts necessary for the sustenance and comfort of the people; whereas we know the contrary to be the case. If it were true, there should be no class in our own country willing to sit down with the dubious benefits of monopoly, instead of pushing on for the certain results of enlightened competition. It could only be true at the expense of the old proverb, that necessity is the mother of invention; for do we not every day see men submitting idly and languidly to evils which can just be borne? whereas, if these were a little greater, and therefore insupportable, they would at once be remedied. An impulse *ab extra* seems in a vast number of instances to be necessary, to promote the good of both nations and individuals. Now, whether this shall come in the ordinary course of things, and be recognised as necessity, or from an enlightened power having a

certain end, generally beneficial, in view, does not appear to be of much consequence, provided only we can be tolerably well assured against the abuses to which all power is liable. It may be well worthy of consideration, whether, in this country, we have not carried the principle of *Laissez faire*, or *leave us alone*, a little too far in certain matters, where some gentle coercion would have been more likely to benefit all concerned.

## FOOTNOTES:

[1] The idea of this article, and the above facts, are derived from a valuable memoir just published by the Board of Health, with reference to the practical application of sewage water and town manures to agricultural production.

[2] We understand that this has been the case with factory-owners at Manchester who have applied the smoke-preventing apparatus. The saving from such an apparatus in the office where this sheet is printed, appears to be about 5 per cent.; an ample equivalent for the outlay.

---

# MONSIEUR JEROME AND THE RUSSIAN PRINCESS.

[Return to Table of Contents](#)

On arriving at Blois, I went to the Hôtel de la Tête Noire—a massive, respectable-looking building, situated on the quay nearly opposite a bridge that crosses the river to the suburb of St Etienne. The comfort of the rooms, and the excellence of the dinners that succeeded one another day by day, induced me to stay longer than I had intended, and rendered me spectator and part-actor in an adventure not uncommon in French-land. My apartment was numbered 48—by the way, who ever saw No. 1 in a hotel, or upon a watch?—and next door—that is, at No. 49—dwelt a very dignified-looking gentleman, always addressed as M. Jerome. I often take occasion to say, that I pique myself on being something of a physiognomist; and as I have been several times right in my judgment of character and position from inspection of the countenance, the occasions in which I have been mistaken may be set down as exceptions. M. Jerome at once interested me; and as I was idly in search of health, and had taken care to have nothing whatever to do but to kill time, the observation of this gentleman's appearance and manners naturally formed a chief part of my occupation.

I began by ascertaining exactly the colour of his eyes and hair—nearly black; the shape of his nose—straight, and rather too long; and would have been glad to examine the form of his mouth, but a huge moustache hanging over his lips in the French military style—see the portrait of General Cavaignac—prevented me from ascertaining the precise contour of what one of my old philosophers calls the Port Esquiline of Derision. M. Jerome was, upon the whole, a handsome man, with a romantically bilious complexion; and the expression of his large dark eyes was really profound and striking. His costume was always fashionable, without being showy; and there was nothing to object to but a diamond ring, somewhat too ostentatiously displayed on the little finger, which, in all his manual operations, at dinner or elsewhere, always cocked up with an impertinent

'look-at-me air,' that I did not like. When, indeed, this dandy walked slowly out of the dining-room to the door-step, and lighted his cigar, the said little finger became positively obnoxious; and I used to think whether it were possible that that human being had been created purposely as a scaffolding whereon to exhibit a flashing little stone, set in twenty shillings worth of gold.

M. Jerome, though not, strictly speaking, a silent man, was sufficiently reserved at table. The early courses were by him always allowed to pass without any further remark than what politeness requires—as: 'Shall I send you some more of this *blanquette*?' or, 'With pleasure, sir;' and so forth. When dessert-time approached, however, he generally began to unbend, to take part in the general conversation, and throw in here and there a piquant anecdote. He did this with so much grace, that had it not been for the diamond ring, I should have been disposed to consider him as a man of large experience in the best society. The other people who generally attended at table—travellers, commercial and otherwise, with one or two smart folks from the town, on the look-out for Parisian gossip, to retail to the less adventurous members of their circle—were all delighted with M. Jerome: it was M. Jerome here, and M. Jerome there; and if M. Jerome happened to dine out, every one seemed to feel uneasy, and look upon him as guilty of a great dereliction of duty. They could almost as well have done without their *demi-tasse*.

Although I am an inquisitive, I am not a very impertinent man. I like to pry into other people's affairs only in so far as I can do so without hurting their feelings, or putting my own self-love in danger of a check. If, therefore, I gave the reins to my curiosity, and devoted myself to studying the more apparent movements of this M. Jerome, I shrank from putting any direct questions to the *garçon*, who might probably at once have given me a very prosaic account of him. On one occasion, I threw in casually a remark, to the effect that the gentleman at No. 49 seemed a great favourite with the fair sex; but the only reply was a smile, and an acknowledgment that, in general, people of fascinating exterior—here the *garçon* glanced at the mirror he was dusting—were great favourites with the fairer portion of the creation. 'We Frenchmen,' it was added, 'know the way to the female heart better than most men.' The waiter had paused with his duster in his hand. I

felt that he was going to give me his Art of Love; and opportunely remembering that I had a letter to put into the post, I escaped the infliction for the time.

I had, indeed, observed that if the public generally admitted the valuable qualities of M. Jerome as a companion, his reputation was based principally on the approval of the ladies. All these excellent judges agreed that he was a nice, quiet, agreeable person; and 'so handsome!' At least the seven members of an English family, who had come to visit Chambord, and lingered at the hotel a week—five of them were daughters—all expressed this opinion of M. Jerome; and even a supercilious French lady, with a particle attached to her name, admitted that he was 'very well.'

One day, a new face appeared at table to interest me; and as the mysterious gentleman and his diamond ring had puzzled me for a fortnight, during which I had made no progress towards ascertaining his real position and character, I was not sorry to have my attention a little diverted by a mysterious lady. Madame de Mourairef—a Russian name, thought I—was a very agreeable person to look at; much more so to me than M. Jerome. She was not much past twenty years of age; small, slight, elegant in shape, if not completely so in manners; and with one of those charming little faces which you can analyse into ugliness, but which in their synthesis, to speak as moderns should, are admirable, adorable, fascinating. I should have thought that such a *minois* could belong only to Paris—the city, by the way, of ugly women, whom art makes charming. However, there it was above the shoulders, high of course—swan-necked women are only found in England—above the shoulders of a Russian marchioness, princess, czarina, or what you will, who called for her cigarettes after dinner, was attended by a little *soubrette*, named Penelope, and looked for all the world as if she had just been whirled off the boards of the Opera Comique.

I at first believed that this was a mere *mascarade*; but when a letter in a formidable envelope, with the seal of the Russian embassy, arrived, and was exhibited in the absence of the lady herself, to every one of the lodgers, in proof of the aristocratic character of the customer of the Tête Noire, I began to doubt my own perspicacity, and to imagine that I had now a far more interesting object of study than M. Jerome and his diamond ring. Madame

de Mourairef was an exceedingly affable person; and the English family aforesaid, whom I have reason to believe were Cockney tradesfolks, pronounced her to be very high-bred—without a fault, indeed, if it had not been for that horrid habit of smoking, which, as they judiciously observed, however, was a peculiar characteristic of the Russians. I am afraid, they would have set her down as a vulgar wretch, had they not been forewarned that she was aristocratic. The French lady seemed to look upon the foreign one as an intruder, and scarcely deigned to turn her eyes in that direction. Probably this was because she was so charming, and monopolised so much of the attention of us gentlemen.

'They no sooner looked than they loved,' says Rosalind. This was not, perhaps, quite the case with M. Jerome and the Russian princess, who took care to let it be known that she was a widow; but in a very few days what is called 'a secret sympathy' evidently sprang into existence. The former, of course, made the first advances. His diplomatic and seductive arts were not, however, put to a great test, for in three days the lady manifestly felt uneasy until he presented himself at dinner; and in a week, I met them walking arm in arm on the bridge. It was easy to see that he was on his good behaviour; and from some fragments of conversations I overheard between them when they met in the passage opposite my door, I learned that he was 'doing the melancholy dodge,' as in the vernacular we would express it; and had many harrowing revelations to make as to the manner in which his heart had been trifled with by unfeeling beauties.

'There is a tide in the affairs of an hôtel:' I am in a mood for quoting from my favourite authors; and whereas we had at one time sat down nearly twenty to table, we suddenly found ourselves to be only three—M. Jerome, the princess, and myself. A kind of intimacy was the natural result. We made ourselves mutually agreeable; and I was not at all surprised, when one evening Madame de Mourairef invited us two gentlemen to take tea with her in her little sitting-room. Both accepted joyfully; and though I am persuaded that M. Jerome would have preferred a tête-à-tête, he accepted my companionship with tolerable grace. We strolled together, indeed, on the quay for half an hour. It was raining slightly, and I had a cough; but I have too good an opinion of human nature to imagine that my new acquaintance

kept me out by his fascinating conversation, in order to make me catch a desperate cold, that would send me wheezing to bed.

The tea was served, as I suppose it is served in Russia, very weak, with a plentiful admixture of milk and accompaniment of *biscuits glacés*. Madame de Mourairef did the honours in an inexpressibly graceful manner; and I observed that there was a delightful intimacy between her and her maid Penelope, that quite upset my ideas of northern serfdom. I think they even once exchanged a wink, but of this I am not sure. There is nothing like experience to expand one's ideas, and I made up my mind to re-examine the whole of my notions of Muscovite vassalage. M. Jerome seemed less struck by these circumstances than myself—being probably too much absorbed in contemplation of our hostess—but even he could not avoid exclaiming, 'that if that were the way in which serfs were treated, he should like to be a serf—of such a mistress!'

'You Frenchmen are so gallant!' was the reply.

A little while afterwards, somebody proposed a game of whist. There was an objection to 'dead-man,' and Penelope, with a semi-oriental salaam, offered to 'take a hand.' Madame de Mourairef was graciously pleased to order her to do so. We shuffled, cut, and played; and when midnight came, and it was necessary to retire, I felt almost afraid to examine into my own heart, lest I might find that the soubrette appeared to me at least as high-bred as the mistress.

We spent some delightful evenings in this manner, and perhaps still more delightful days, for by degrees we became inseparable, and all our walks and drives were made in common. The garçon often looked maliciously at me, even offered once or twice to develop his Art of Love; but I did not choose to be interrupted in my physiognomical studies, and gave him no opportunity.

A picnic was proposed, and agreed upon. We intended at first to go to Chambord; but there was danger of a crowd; and a valley on the road to Vendôme was pitched upon. A *calèche* took us to the place, and set us down in a delightful meadow, enamelled with flowers, as all meadows are in poetry. A few great trees, forming almost a grove, shaded a slope near the

banks of a sluggish stream that crept along between an avenue of poplars. Here the cloth was laid at once for breakfast; and whilst M. Jerome and the princess strolled away to talk of blighted hopes, Russia, serfdom, wedlock, and the conflagration of the Kremlin, Penelope made the necessary preparation; and I, in my character of a fidgety old gentleman, first advised and then assisted her. I am afraid the young damsel had designs upon my heart, for she put several questions to me on the state of vassalage in England; and when I developed succinctly the principles and advantages of our free constitution, and said some eloquent things that formed a French edition of 'Britons never shall be slaves,' she became quite enthusiastic; her cheeks flushed, her eyes brightened; and with a sort of Thervigne-de-Mericourt gesture, she cried: 'Vive la République!' This was scarcely the natural product of what I had said; but so lively a little creature, in her dainty lace-cap and flying pink ribbons, neat silk *caraco*, plaid-patterned gown, with pagoda sleeves, as she called them, and milk-white *manchettes*—her *bottines* from the Rue Vivienne, and her face from Paradise—could reconcile many a harder heart than mine to greater incongruities. Our arrangements being made, therefore, I sat down on a camp-stool, whilst Penelope reclined on the grass; and I endeavoured to explain to her the great advantages of a moderate constitutional government, with checks, balances, and so forth. Although she yawned, I am sure it was not from ennui, but in order to shew me her pretty pearly teeth.

M. Jerome and the princess came streaming back over the meadow—even affected to scold me for having remained behind. They were evidently on the best possible terms, and I took great satisfaction in contemplating their happiness. Either my perspicacity was at fault, however, or both had some secret cause of uneasiness that pressed upon their minds as the day advanced. Had they been only betrayed into a declaration and a plighting of their troth in a hurry? Did they already repent? Did Madame de Mourairef regret the barbarous splendour of her native land? Did M. Jerome begin to mourn over the delights of bachelorship? These were the questions I put to myself without being able to invent any satisfactory answer. The day passed, however, pleasantly enough; and the calèche came in due time to take us back to Blois.



Next morning, M. Jerome entered my room with a graceful bow, to announce his departure for Paris, whither it was necessary for him to go to obtain the necessary papers for his marriage, and Madame de Mourairef, he added, accompanied him. I uttered the necessary congratulations, and gave my address in Paris, that he might call upon me as soon as he was settled in the hôtel he proposed to take.

'I take two persons with me,' he said, smiling; 'but one of them leaves her heart behind, I am afraid.'

This alluded to Penelope; but I was determined not to understand. I went to say adieu to Madame de Mourairef, who seemed rather excited and anxious. Penelope almost succeeded in wringing forth a tear; but I did not think it was decreed that at my age I should really make love to a Russian serf, however charming. So off they went to the railway station, leaving me in a very dull, stupid, melancholy mood.

'What a fortunate man M. Jerome is!' said the garçon, as he came into my room a few minutes afterwards.

'Yes,' I replied; 'Madame de Mourairef seems in every way worthy of him.'

'I should think so,' quoth he. 'It is not every waiter, however fascinating, that falls in with a Russian princess.'

'Waiter! M. Jerome!'

'Of course,' replied my informant. 'You seem surprised; but M. Jerome is really a waiter at the Café ——, on the Boulevard des Italiens; came down for his health. We were comrades once, and I promised to keep the secret, for he thought it extremely probable that he might meet a wealthy English lady here, who might fall in love with him—your countrywomen are so eccentric. He has found a Russian princess, which is better. I suppose we must now call him Monseigneur?'

Although, like the rest of my species, disposed to laugh at the misfortunes of my fellow-creatures, I confess that I pitied Madame de Mourairef; for I felt persuaded that M. Jerome had passed himself off as a very

distinguished personage. However, there was no remedy, and I had no right to interfere in the matter. The lady, indeed, had been in an unpardonable hurry to be won, and must take the consequences.

In the afternoon, there was a great bustle in the hôtel, and half-a-dozen voices were heard doing the work of fifty. I went out into the passage, and caught the first fragments of an explanation that soon became complete. M. Alphonse, courier to M. de Mourairef, had arrived, and was indignantly maintaining that Sophie and Penelope, the two waiting-maids of the princess, had arrived at the Tête Noire, to take a suite of rooms for their mistress; whilst the landlord and his coadjutors, slow to comprehend, averred that the great lady had herself been there, and departed. The truth at length came out—that these two smart Parisian lasses, having a fortnight before them, had determined to give up their places, and play the masquerade which I have described. When M. and Madame de Mourairef, two respectable, middle-aged people, arrived, they were dismally made acquainted with the sacrilege that had been committed; but as no debts had been contracted in their name, and their letters came in a parcel by the post from Orleans, they laughed heartily at the joke, and enjoyed the idea that Sophie had been taken in.

The following winter, I went into a café newly established in the Rue Poissonnière, and was agreeably surprised to see Sophie, the pseudo-princess, sitting behind the counter in magnificent toilette, receiving the bows and the money of the customers as they passed before her, whilst M. Jerome—exactly in appearance as before, except that prosperity had begun to round him—was leaning against a pillar in rather a melodramatic attitude, a white napkin gracefully depending from his hand. They started on seeing me, and were a little confused, but soon laughed over their adventure; called Penelope to take her turn at the counter—the little serf whispered to me as she passed, that I was 'a traitor, a barbarian,' and insisted on treating me to my coffee and my *petit verre*, free, gratis, for nothing.

---

# MEMOIRS OF LORD JEFFREY.

[Return to Table of Contents](#)

In the crisis of the French Revolution, British society was paralysed with conservative alarms, and all tendency to liberal opinions, or even to an advocacy of the most simple and needful reforms, was met with a ruthless intolerance. In Scotland, there was not a public meeting for five-and-twenty years. In that night of unreflecting Toryism, a small band of men, chiefly connected with the law in Edinburgh, stood out in a profession of Whiggism, to the forfeiture of all chance of government patronage, and even of much of the confidence and esteem of society. Three or four young barristers were particularly prominent, all men of uncommon talents. The chief was Francis Jeffrey, who died in 1850, in the seventy-seventh year of his age, after having passed through a most brilliant career as a practising lawyer and judge, and one still more brilliant, as the conductor, for twenty-seven years, of the celebrated *Edinburgh Review*. Another was Henry Cockburn, who has now become the biographer of his great associate. It was verily a remarkable knot of men in many respects, but we think in none more than a heroic probity towards their principles, which were, after all, of no extravagant character, as was testified by their being permitted to triumph harmlessly in 1831-2. These men anticipated by forty years changes which were ultimately patronised by the great majority of the nation. They all thrived professionally, but purely by the force of their talents and high character. As there was not any precisely equivalent group of men at any other bar in the United Kingdom, we think Scotland is entitled to take some credit to herself for her Jeffreys, her Cranstons, her Murrays, and her Cockburns: at least, she will not soon forget their names.

Lord Jeffrey—his judicial designation in advanced life—was of respectable, but not exalted parentage. After a careful education at Edinburgh, Glasgow, and Oxford, he entered at the bar in 1793, when not yet much more than twenty years of age. His father, being himself a Tory, desired the young lawyer to be so too, seeing that it would be favourable to his prospects; but he could not yield in this point to paternal counsel. The consequence was,

that this able man practised for ten years without gaining more than L. 100 per annum. All this time, he cultivated his mind diligently, and was silently training himself for that literary career which he subsequently entered upon. His talents were at that time known only to a few intimates: there were peculiarities about him, which prevented him from being generally appreciated up to his deserts. His figure, to begin with, was almost ludicrously small. Then, in his anxiety to get rid of the Scottish accent, he had contracted an elocution intended to be English, but which struck every one as most affected and offensive. His manners were marked by levity, and his conversation to many seemed flippant. His literary musings also acted unfavourably on the solicitors, the leading patrons of young counsellors. Reduced by dearth of business almost to despair, he had at one time serious thoughts of flinging himself upon the London press for a subsistence. The first smile of fortune beamed upon him in 1802, when the *Edinburgh Review* was started—a work of which he quickly assumed the management. That it brought him income and literary renown, we gather from Lord Cockburn's pages; but we do not readily find it explained how. While more declaredly a literary man than ever, he now advanced rapidly at the bar, and quickly became a man of wealth and professional dignity. We suspect that, after all that is said of the effect of literary pursuits on business prospects, the one success was a consequence in great measure of the other.

The value of this work rests, in our opinion, on the illustration which it presents of the possibility of a man of sound though unpopular opinions passing through life, not merely without suffering greatly from the wrath of society, but in the enjoyment of some of its highest honours. After reading this book, one could almost suppose it to be a delusion that the world judges hardly of any man's speculative opinions, while his life remains pure, and his heart manifestly is alive to all the social charities. The heroic consistency of Jeffrey is the more remarkable, when it now appears that he was a gentle and rather timid man, keenly alive to the sympathies of friends and neighbours—indeed, of *womanish* character altogether. As is well known, his time arrived at last, when, on the coming of the Whigs into power in 1830, he was raised to the dignified situation of Lord Advocate for Scotland, and was called upon to take the lead, officially, in making those political changes which he had all along advocated. It is curious, however, and somewhat startling, to learn how little gratification he professed to feel

in what appeared so great a triumph. While his rivals looked with envy on his exaltation, and mobs deemed it little enough that he should be entirely at their beck in requital for the support they gave him, Mr Jeffrey was sighing for the quiet of private life, groaning at his banishment from a happy country-home, and not a little disturbed by the troubled aspect of public affairs. Mr Macaulay has somewhere remarked on the general mistake as to the 'sweets of office.' We are assured by Lord Cockburn, that Jeffrey would have avoided the advocateship if he could. He accepted it only from a feeling of duty to his party. He writes to a female relation of the 'good reason I have for being sincerely sick and sorry at an elevation for which so many people are envying, and thinking me the luckiest and most elevated of mortals for having attained.' And this subject is still further illustrated by an account he gives of the conduct of honest Lord Althorpe during the short interval in May 1832, when the Whigs were *out*. 'Lord Althorpe,' he says, 'has gone through all this with his characteristic cheerfulness and courage. The day after the resignation, he spent in a great sale-garden, choosing and buying flowers, and came home with five great packages in his carriage, devoting the evening to studying where they should be planted in his garden at Althorpe, and writing directions and drawing plans for their arrangement. And when they came to summon him to a council on the Duke's giving in, he was found in a closet with a groom, busy oiling the locks of his fowlingpieces, and lamenting the decay into which they had fallen during his ministry.'

In some respects, the book will create surprise, particularly as to the private life and character of the great Aristarch. While the *Edinburgh Review* was in progress under the care of Mr Jeffrey, it was a most unrelenting tribunal for literary culprits, as well as a determined assertor of its own political maxims. The common idea regarding its chief conductor represented him as a man of extraordinary sharpness, alternating between epigrammatic flippancy and democratic rigour. Gentle and refined feeling would certainly never have been attributed to him. It will now be found that he was at all times of his life a man of genial spirit towards the entire circle of his fellow-creatures—that his leading tastes were for poetry and the beautiful in external nature, particularly fine scenery—that he revelled in the home affections, and was continually saying the softest and kindest things to all about him—a lamb, in short, while thought a lion. The local circle in which

he lived was somewhat limited and exclusive, partly, perhaps, in consequence of having been early shut in upon itself by its dissent from the mass of society on most public questions; but in this circle Jeffrey was adored by men, women, and children alike, on account of his extreme kindness of disposition. He was almost, to a ridiculous degree, dependent on the love of his friends; and the terms in which he addresses some of them, particularly ladies, sound odd in this commonsense world. Thus, the wife of one of his friends is, 'My sweet, gentle, and long-suffering Sophia.' He pours out his very heart to his correspondents, and with an effect which would reconcile to him the most irascible author he ever scarified. Thus, to his daughter, who had just left him with her husband:—'I happened to go up stairs, and passing into our room, saw the door open of that little one where *you* used to sleep, and the very bed waiting there for you, so silent and desolate, that all the love, and the *miss* of you, which fell so sadly on my heart the first night of your desertion, came back upon it so heavily and darkly, that I was obliged to shut myself in, and cry over the recollection, as if all the interval had been annihilated, and that loss and sorrow were still fresh and unsubdued before me; and though the fit went off before long, I feel still that I must vent my heart by telling you of it, and therefore sit down now to write all this to you, and get rid of my feelings, that would otherwise be more likely to haunt my vigils of the night.' Thus, on the death of a sister in his early days:—'A very heavy blow upon us all, and much more so on me than I had believed possible. The habit of seeing her almost every day, and of living together intimately since our infancy, had wound so many threads of affection round my heart, that when they were burst at once, the shock was almost overwhelming. Then, the unequalled gentleness of her disposition, the unaffected worth of her affections, and miraculous simplicity of character and manners, which made her always appear as pure and innocent as an infant, took so firm, though gentle a hold on the heart of every one who approached her, that even those who have been comparatively strangers to her worth, have been greatly affected by her loss.... During the whole of her illness, she looked beautiful; and when I gazed upon her the moment after she had breathed her last, as she lay still, still, and calm, with her bright eyes half closed, and her red lips half open, I thought I had never seen a countenance so lovely. A statuary might have taken her for a model. Poor, dear love! I kissed her cold lips, and pressed her cold, wan, lifeless hand, and would willingly at that moment have put

off my own life too, and followed her. When I came here, the sun was rising, and the birds were singing gaily, as I sobbed along the empty streets.'

The sensibility of Jeffrey to all fine expression that comes to us through the medium of literature was intense, most so in his latter days, when his whole character seems to have undergone a mellowing process. While pining under his greatness as Lord Advocate, and an authority in parliament (1833), he says: 'If it were not for my love of beautiful nature and poetry, my heart would have died within me long ago. I never felt before what immeasurable benefactors these same poets are to their kind, and how large a measure, both of actual happiness and prevention of misery, they have imparted to the race. I would willingly give up half my fortune, and some little fragments of health and bodily enjoyment that yet remain to me, rather than that Shakspeare should not have lived before me.' Who that had only read his lively, acute articles in the former Review, could have believed him to be so deeply sympathetic with an unfortunate poet, as he shews in the following fine passage in one of his letters (1837)? 'In the last week, I have read all Burns's Life and Works—not without many tears, for the life especially. What touches me most, is the pitiable poverty in which that gifted being (and his noble-minded father) passed his early days—the painful frugality to which their innocence was doomed, and the thought how small a share of the useless luxuries in which we (such comparatively poor creatures) indulge, would have sufficed to shed joy and cheerfulness in their dwellings, and perhaps to have saved that glorious spirit from the trials and temptations under which he fell so prematurely. Oh! my dear Empson, there must be something *terribly* wrong in the present arrangements of the universe, when those things can happen, and be thought natural. I could lie down in the dirt, and cry and grovel there, I think, for a century, to save such a soul as Burns from the suffering, and the contamination, and the *degradation*, which these same arrangements imposed upon him; and I fancy that, if I could but have known him, in my present state of wealth and influence, I might have saved, and reclaimed, and preserved him, even to the present day. He would not have been so old as my brother-judge, Lord Glenlee, or Lord Lynedoch, or a dozen others that one meets daily in society. And what a creature, not only in genius, but in nobleness of character, potentially at least, if right models had been put *gently* before him!'

The narrative of Lord Cockburn occupies only one volume, the other being filled with a selection from Lord Jeffrey's letters. It is a brief chronicle of the subject; many will feel it to be unsatisfactorily slight. The author seems to have been afraid of becoming tedious. It is, however, a manly and faithful narration, with the rare merit of going little, if at all, beyond bounds in its appreciation of the hero or his associates, or the importance of the circumstances in which he moved. The sketches of some of Jeffrey's contemporaries, as John Clerk, Sir Harry Moncreiff, and Henry Erskine, are vigorous pieces of painting, which will suggest to many a desire that the author should favour the public with a wider view of the men and things of Scotland in the age just past. With a natural partiality as a friend and as a biographer, he seems to us to set too high an estimate on Jeffrey when he ranks him as one of a quartett, including Dugald Stewart, Sir Walter Scott, and Dr Chalmers, 'each of whom in literature, philosophy, or policy, caused great changes,' and 'left upon his age the impression of the mind that produced them.' Few of his countrymen would claim this rank for either Jeffrey or Stewart. Jeffrey, no doubt, raised a department of our literature from a low to a high level; he was a Great Voice in his day. But he produced nothing which can permanently affect us; he gave no great turn to the sentiments or opinions of mankind. His only original effort of any mark, is his exposition of the association theory of beauty, which rests on a simple mistake of what is pleasing for what is beautiful, and is already nothing. We suspect that no man with his degree of timidity will ever be very great, either as a philosopher or as a man of deeds. He was a brilliant *writer*—the most brilliant, and, with one exception, the most versatile in his age; but to this we would limit his panegyric, apart from the glory of his long and consistent career as a politician, which we think can scarcely be overestimated.

So many of the most remarkable passages of the work have been already hackneyed through the medium of the newspapers, that we feel somewhat at a loss to present any which may have a chance of being new to our readers. So early as his twentieth year, we find Mr Jeffrey thus sensibly expressing himself on an important subject:—

'There is nothing in the world I detest so much as companions and acquaintances, as they are called. Where intimacy has gone so far as to



banish reserve, to disclose character, and to communicate the reality of serious opinions, the connection may be the source of much pleasure—it may ripen into friendship, or subside into esteem. But to know half a hundred fellows just so far as to speak, and walk, and lounge with them; to be acquainted with a multitude of people, for all of whom together you do not care one farthing; in whose company you speak without any meaning, and laugh without any enjoyment; whom you leave without any regret, and rejoin without any satisfaction; from whom you learn nothing, and in whom you love nothing—to have such a set for your society, is worse than to live in absolute solitude; and is a thousand times more pernicious to the faculties of social enjoyment, by circulating in its channels a stream so insipid.'

At the peace of Amiens, Jeffrey wrote thus to his friend Morehead, 7th October 1801: 'It is the only public event in my recollection that has given me any lively sensation of pleasure, and I have rejoiced at it as heartily as it is possible for a private man, and one whose own condition is not immediately affected by it, to do. How many parents and children, and sisters and brothers, would that news make happy? How many pairs of bright eyes would weep over that gazette, and wet its brown pages with tears of gratitude and rapture? How many weary wretches will it deliver from camps and hospitals, and restore once more to the comforts of a peaceful and industrious life? What are victories to rejoice at, compared with an event like this? Your bonfires and illuminations are dimmed with blood and with tears, and battle is in itself a great evil, and a subject of general grief and lamentation. The victors are only the least unfortunate, and suffering and death have, in general, brought us no nearer to tranquillity and happiness.' It may be well thus to bring the value of a peace before the public mind. Let those who only know of war from history, reflect how great must be the evils of a state the cessation of which gives such a feeling of relief.

Here is a curious passage about the society of Liverpool in 1813, and his love of his native country. We must receive the statement respecting the Quakers with something more than doubt, at least as to the extent to which it is true:—'I have been dining out every day for this last week with Unitarians, and Whigs, and Americans, and brokers, and bankers, and small fanciers of pictures and paints, and the Quaker aristocracy, and the

fashionable vulgar, of the place. But I do not like Liverpool much better, and could not live here with any comfort. Indeed, I believe I could not live anywhere out of Scotland. All my recollections are Scottish, and consequently all my imaginations; and though I thank God that I have as few fixed opinions as any man of my standing, yet all the elements out of which they are made have a certain national cast also. In short, I will not live anywhere else if I can help it; nor die either; and all old Esq's<sup>[3]</sup> eloquence would have been thrown away in an attempt to persuade me that *banishment furth the kingdom* might be patiently endured. I take more to Roscoe, however: he is thoroughly good-hearted, and has a sincere, though foolish concern for the country. I have also found out a Highland woman with much of the mountain accent, and sometimes get a little girl to talk to. But with all these resources, and the aid of the Botanical Garden, the time passes rather heavily; and I am in some danger of dying of ennui, with the apparent symptoms of extreme vivacity. Did you ever hear that most of the Quakers die of stupidity—actually and literally? I was assured of the fact the other day by a very intelligent physician, who practised twenty years among them, and informs me that few of the richer sort live to be fifty, but die of a sort of atrophy, their cold blood just stagnating by degrees among their flabby fat. They eat too much, he says; take little exercise; and, above all, have no nervous excitement. The affection is known in this part of the country by the name of *the Quaker's disease*, and more than one-half of them go out so. I think this curious, though not worth coming to Liverpool to hear, or writing from Liverpool, &c.'

He was at this time about to sail for America, in order to marry a lady of that country. In a letter to Morehead, he recalls his old-fashioned country residence of Hatton, in West Lothian, and Mr Morehead's family now resident there. Tuckey was a nickname for one of Mr Morehead's daughters; Margaret was another. Till the last, he had pet names for all his own descendants and relatives, having no doubt felt how much they contribute to the promotion of family affection. 'I am almost ashamed of the degree of sorrow I feel at leaving all the early and long-prized objects of my affection; and though I am persuaded I do right in the step which I am taking, I cannot help wishing that it had not been quite so wide and laborious a one. You cannot think how beautiful Hatton appears at this moment in my imagination, nor with what strong emotion I fancy I hear

Tuckey telling a story on my knee, and see Margaret poring upon her French before me. It is in your family that my taste for domestic society and domestic enjoyments has been nurtured and preserved. Such a child as Tuckey I shall never see again in this world. Heaven bless her, and she will be a blessing both to her mother and to you.' After touching upon a volume of poems which Mr Morehead had published—'If I were you, however, I would live more with Tuckey, and be satisfied with my gardening and pruning—with my preaching—a good deal of walking and comfortable talking. What more has life? and how full of vexation are all ambitious fancies and perplexing pursuits! Well, God bless you! Perhaps I shall not have an opportunity to inculcate my innocent epicurism upon you for a long time again. It will do you no harm.'

It will be a new fact to most of the admirers of Jeffrey, that he had in early life devoted himself to the writing of poetry. Of what he wrote between 1791 and 1796, the greater part has disappeared from his repositories. 'But,' says his biographer, 'enough survives to attest his industry, and to enable us to appreciate his powers. There are some loose leaves and fragments of small poems, mostly on the usual subjects of love and scenery, and in the form of odes, sonnets, elegies, &c.; all serious, none personal or satirical. And besides these slight things, there is a completed poem on Dreaming, in blank verse, about 1800 lines long. The first page is dated Edinburgh, May 4, 1791, the last Edinburgh, 25th June 1791; from which I presume that we are to hold it to have been all written in these fifty-three days—a fact which accounts for the absence of high poetry, though there be a number of poetical conceptions and flowing sentences. Then there is a translation into blank verse of the third book of the *Argonauticon* of Apollonius Rhodius. The other books are lost, but he translated the whole poem, extending to about 6000 lines.... And I may mention here, though it happens to be in prose, that of two plays, one, a tragedy, survives. It has no title, but is complete in all its other parts.... He was fond of parodying the *Odes* of Horace, with applications to modern incidents and people, and did it very successfully. The *Otium Divos* was long remembered. Notwithstanding this perseverance, and a decided poetical ambition, he was never without misgivings as to his success. I have been informed, that he once went so far as to leave a poem with a bookseller, to be published, and fled to the country; and that, finding some obstacle had occurred, he returned,

recovered the manuscript, rejoicing that he had been saved, and never renewed so perilous an experiment.

'There may be some who would like to see these compositions, or specimens of them, both on their own account, and that the friends of the many poets his criticism has offended might have an opportunity of retaliation, and of shewing, by the critic's own productions, how little, in their opinion, he was worthy to sit in judgment on others. But I cannot indulge them. Since Jeffrey, though fond of playing with verses privately, never delivered himself up to the public as the author of any, I cannot think that it would be right in any one else to exhibit him in this capacity. I may acknowledge, however, that, so far as I can judge, the publication of such of his poetical attempts as remain, though it might shew his industry and ambition, would not give him the poetical wreath, and of course would not raise his reputation. Not that there are not tons of worse verse published, and bought, and even read, every year, but that their publication would not elevate Jeffrey. His poetry is less poetical than his prose. Viewed as mere literary practice, it is rather respectable. It evinces a general acquaintance, and a strong sympathy, with moral emotion, great command of language, correct taste, and a copious possession of the poetical commonplaces, both of words and of sentiment. But all this may be without good poetry.'

Having given little of Lord Cockburn in our extracts, we shall conclude with a passage of his narration which stands out distinctly, and has a historical value. It refers to Edinburgh in the second decade of the present century, but takes in a few names of deceased celebrities:—"The society of Edinburgh was not that of a provincial town, and cannot be judged of by any such standard. It was metropolitan. Trade or manufactures have, fortunately, never marked this city for their own; but it is honoured by the presence of a college famous throughout the world, and from which the world has been supplied with many of the distinguished men who have shone in it. It is the seat of the supreme courts of justice, and of the annual convocation of the Church, formerly no small matter; and of almost all the government offices and influence. At the period I am referring to, this combination of quiet with aristocracy made it the resort, to a far greater extent than it is now, of the families of the gentry, who used to leave their country residences and enjoy the gaiety and the fashion which their

presence tended to promote. Many of the curious characters and habits of the receding age—the last purely Scotch age that Scotland was destined to see—still lingered among us. Several were then to be met with who had seen the Pretender, with his court and his wild followers, in the Palace of Holyrood. Almost the whole official state, as settled at the Union, survived; and all graced the capital, unconscious of the economical scythe which has since mowed it down. All our nobility had not then fled. A few had sense not to feel degraded by being happy at home. The Old Town was not quite deserted. Many of our principal people still dignified its picturesque recesses and historical mansions, and were dignified by them. The closing of the continent sent many excellent English families and youths among us, for education and for pleasure. The war brightened us with uniforms, and strangers, and shows.

'Over all this, there was diffused the influence of a greater number of persons attached to literature and science, some as their calling, and some for pleasure, than could be found, in proportion to the population, in any other city in the empire. Within a few years, including the period I am speaking of, the College contained Principal Robertson, Joseph Black, his successor Hope, the second Munro, James Gregory, John Robison, John Playfair, and Dugald Stewart; none of them confined monastically to their books, but all—except Robison, who was in bad health—partaking of the enjoyments of the world. Episcopacy gave us the Rev. Archibald Alison; and in Blair, Henry, John Home, Sir Harry Moncreiff, and others, Presbytery made an excellent contribution, the more to be admired that it came from a church which eschews rank, and boasts of poverty. The law, to which Edinburgh has always been so largely indebted, sent its copious supplies; who, instead of disturbing good company by professional matter—an offence with which the lawyers of every place are charged—were remarkably free of this vulgarity; and being trained to take difference of opinion easily, and to conduct discussions with forbearance, were, without undue obtrusion, the most cheerful people that were to be met with. Lords Monboddo, Hailes, Glenlee, Meadowbank, and Woodhouselee, all literary judges, and Robert Blair, Henry Erskine, and Henry Mackenzie, senior, were at the earlier end of this file; Scott and Jeffrey at the later—but including a variety of valuable persons between these extremities. Sir William Forbes, Sir James Hall, and Mr Clerk of Eldin, represented a class

of country gentlemen cultivating learning on its account. And there were several, who, like the founder of the Huttonian theory, selected this city for their residence solely from the consideration in which science and letters were here held, and the facilities, or rather the temptations, presented for their prosecution. Philosophy had become indigenous in the place, and all classes, even in their gayest hours, were proud of the presence of its cultivators. Thus learning was improved by society, and society by learning. And unless when party-spirit interfered—which, at one time, however, it did frequently and bitterly—perfect harmony, and, indeed, lively cordiality, prevailed.

'And all this was still a Scotch scene. The whole country had not begun to be absorbed in the ocean of London. There were still little great places—places with attractions quite sufficient to retain men of talent or learning in their comfortable and respectable provincial positions, and which were dignified by the tastes and institutions which learning and talent naturally rear. The operation of the commercial principle which tempts all superiority to try its fortune in the greatest accessible market, is perhaps irresistible; but anything is surely to be lamented which annihilates local intellect, and degrades the provincial spheres which intellect and its consequences can alone adorn. According to the modern rate of travelling, the capitals of Scotland and of England were then about 2400 miles asunder. Edinburgh was still more distant in its style and habits. It had then its own independent tastes, and ideas, and pursuits. Enough of the generation that was retiring survived to cast an antiquarian air over the city, and the generation that was advancing was still a Scotch production. Its character may be estimated by the names I have mentioned, and by the fact, that the genius of Scott and of Jeffrey had made it the seat at once of the most popular poetry and the most brilliant criticism that then existed. This city has advantages, including its being the capital of Scotland, its old reputation, and its external beauties, which have enabled it, in a certain degree, to resist the centralising tendency, and have hitherto always supplied it with a succession of eminent men. But now that London is at our door, how precarious is our hold of them, and how many have we lost!'

We would just add one remark which occurs to us after reviewing the career of this eminent patriot and writer, and it may be of service to young men

now entering upon the various paths of ambition. It is the fortune of many to be led by whim, prejudice, and other reasons, into certain tracks of opinion, which, as they do not lead to the public good, so neither do they conduce to any ultimate benefit for those treading them. How striking the contrast between the retrospect of a literary man, who has spent, perhaps, brilliant abilities in supporting every bad cause and every condemned error of his time, and necessarily found all barren at last, and the reflections of one like Francis Jeffrey, who, having embraced just views at first, continued temperately to advocate them until he saw them adopted as necessary for the good of his country, and had the glory of being almost universally thanked for his share in bringing about their triumph! Let young literary men particularly take this duly to heart, for it may save them from many a bitter pang in their latter days.

### FOOTNOTES:

[3] 'Lord Eskgrove, a judge, who consoled a friend he was obliged to banish, by assuring him that there really were places in the world, such as England, for example, where a man, though out of Scotland, might live with some little comfort.'

---

# THE MOONLIGHT RIDE.

[Return to Table of Contents](#)

A number of years ago, a gentleman in Clydesdale offered me a situation as head-groom, which I accepted. He had one horse which was kept in a stable by himself, and was, without exception, the ugliest and most savage animal of his kind I had ever seen. There was not a single point of a strong or a fast horse about him. He was as black as charcoal; he was named Satan, and richly did he deserve the name. He would fly at you, like a dog, with his teeth; attempt to beat you down with his fore-feet; and strike round a corner at you with his hind ones. He had beaten off all the rough-riders, grooms, and jockeys in that part of the country.

After being in the place for a few days, I was asked by the gentleman, if I thought I could make anything of Satan. I replied, that if he beat me, he would be the only horse which had ever done so; but still I considered him to be by far the most savage I had ever seen. 'Try him to-morrow at one o'clock,' said he, as he turned to go away: 'I will have a few friends with me to see how you succeed.'

I determined, however, to try him that night, and without any witness to see whether I succeeded or not. My room was over the stables, and as the moon did not rise till eleven o'clock, I threw myself upon the bedclothes, and, contrary to my intention, fell asleep. When I awoke, it was twelve, the moon was shining brightly, and rendering everything as visible as if it were day.

I went down to the stable with a bridle prepared for the purpose, and a heavily-loaded whip in my hand. I knew that it would be impossible to saddle him; and, indeed, I should be safer on his bare back, in the event of his throwing himself down. I opened the stable-door gently, and there he was prone on his side, his legs and neck stretched out, as I have often seen horses lying after sore fatigue. I clapped my knee upon his head, loosed the collar that bound him, slipped the bit into his mouth, buckled the throat-



band, raised him to his feet, backed him out, and leaped upon his back before he had time to get his eyes right opened. But open them now he did, and that with a vengeance; he pawed, and struck the walls with his fore-feet, till the fire flashed from the stones; and then he reared till he fell right back upon the pavement. I was prepared for this, and slipped off him as he went down, and then leaped on him again as he rose. I had not as yet touched him with whip, bridle, or spur; but now I gave him the curb and the spurs at the same instant. He gave one mad bound, and then went off at a rate that completely eclipsed the speed of the fleetest horse I had ever ridden. He could not trot, but his gallop was unapproachable, and consisted in a succession of leaps, performed with a precision, velocity, and strength, absolutely bewildering.

He fairly overturned all my preconceived notions of a fast horse. On he thundered, till we came under the shadow of a fir-wood, and then, whether out of mischief or dread of the darkness, he halted instantaneously, his fore-feet so close together that you might have put them into a bucket. Owing to the depression of his shoulders—for he had no more withers than an ass—the way that he jerked down his head, and the suddenness of the stop, a monkey, although he had been holding on with his teeth, must have been unseated. For me, I was pitched a long way over his head, but alighted upon a spot so soft and mossy, that it looked as if some kind hand had purposely prepared it for me. Had I been in the slightest degree stunned, or unable to regain my feet, that instant he would have torn me to pieces with his teeth, and beaten my mangled body into the earth with his hoofs. But I at once sprang to my feet, and faced him. I could have escaped by leaping into the wood; but my blood was up, my brain clear, and my heart gave not one extra pulsation. There he stood upon his hind-legs nearly upright, beating the air with his fore-feet, his mouth open, his upper lip curled, his under one drawn down, his large white teeth glancing like ivory in the moonlight. As soon as he saw me upon my feet, he gave a yell such as I had never heard from a horse before, save once, and which I believe is never elicited from that animal, except when under the domination of frantic rage or fear.

This unearthly cry roused every living thing within hearing. An army of rooks, startled from their encampment in the wood, circled and wheeled between us and the moon, shading her light, and filling the midnight air

with their discordant screams. This attracted the attention of Satan, and, bringing his fore-feet to the ground, he pricked up his ears, and listened. I sprang forward, seized him by the mane, and vaulted upon his back. As I stooped forward to gather up the reins, which were dangling from his head, he caught me by the cuff of the jacket—luckily it was but the cuff!—and tore it up to the shoulder. Instantly he seized me again; but this time he succeeded rather better, having a small portion of the skin and flesh of my thigh between his teeth. The intense pain occasioned by the bite, or rather bruise, of a horse's mouth, can only be properly judged of by those who have felt it. I was the madder of the two now; and of all animals, an enraged man is the most dangerous and the most fearless. I gave him a blow between the ears with the end of the whip; and he went down at once, stunned and senseless, with his legs doubled up under him, and his nose buried in the ground. I drew his fore-legs from under him, that he might rise the more readily, and then lashed him into life. He turned his head slowly round, and looked at me, and then I saw that the savage glare of his eye was nearly quenched, and that, if I could follow up the advantage I had gained, I should ultimately be the conqueror. I now assisted him to rise, mounted him, and struck at once with whip and spur. He gave a few bounds forward, a stagger or two, and then fell heavily upon his side. I was nearly under him; however, I did save my distance, although that was all. I now began to feel sorry for him; his wonderful speed had won my respect; and as I was far from being naturally cruel, whip or spur I never used except in cases of necessity: so I thought I would allow him to lie for a few minutes, if he did not incline to get up of himself. However, as I had no faith in the creature, I sat down upon him, and watched him intently. He lay motionless, with his eyes shut; and had it not been for the firm and fast beat of his heart, I should have considered him dying from the effects of the blow; but the strong pulsation told me that there was plenty of life in him; and I suspected that he was lying quiet, meditating mischief. I was right. Every muscle began presently to quiver with suppressed rage. He opened his eyes, and gave me a look, in which fear and fury were strangely blended. I am not without superstition, and for an instant I quailed under that look, as the thought struck me, that the black, unshapely brute before me might actually be the spirit indicated by his name. With a muttered growl at my folly, I threw the idea from me—leaped up—seized the reins—with a lash and a cry made him spring to his feet—mounted him as he rose, and struck the spurs into

his sides. He reared and wheeled; but finding that he could not get rid of me, and being unable to stand the torture of the spurs, which I used freely (it was no time for mercy!) he gave two or three plunges, and then bounded away at that dreadful leaping gallop—that pace which seemed peculiarly his own. I tried to moderate his speed with the bridle; but found, to my surprise, that I had no command over him. I knew at once that something was wrong, as, with the bit I had in his mouth, I ought to have had the power to have broken his jawbone. I stooped forward to ascertain the cause; the loose curb dangling at the side of his head gave a satisfactory explanation.

He had it all his own way now; he was fairly off with me; and all I could do was to bear his head as well up as I could, to prevent him from stumbling. However, as it would have been bad policy to let him know how much he was master, I gave him an occasional touch with the spur, as if wishing him to accelerate his pace; and when he made an extra bound, I patted him on the neck, as if pleased with his performance.

A watery cloud was passing over the face of the moon, which rendered everything dim and indistinct, as we tore away down a grassy slope; the view terminating in a grove of tall trees, situated upon a rising-ground. Beyond the dark outline of the trees, I saw nothing.

As we neared the grove, Satan slackened his speed; this I thought he did with a view to crush me against the trunks of the trees. To prevent him from having time to do this, I struck him with the spurs, and away again he went like fury. As he burst through the trees, I flung my head forward upon his neck, to prevent myself from being swept off by the lower branches. In doing this, the spurs accidentally came in contact with his sides. He gave one tremendous leap forward—the ground sank under his feet—the horse was thrown over his own head—I was jerked into the air—and, amid an avalanche of earth and stones, we were hurled down a perpendicular bank into the brown, swollen waters of the Clyde.

Owing to a bend in the river, the force of the current was directed against this particular spot, and had undermined it; and although strong enough to bear a man or a horse, under ordinary circumstances, yet down at once it thundered under the desperate leap of Satan. However, it did not signify, as

nothing could have prevented us from surging into the water at the next bound.

A large quantity of rain had fallen in the upper part of the shire; and, in consequence, the river was full from bank to brae. I was nearly a stranger to the place; indeed, so much so, that I had supposed we were running from the river. This, combined with the suddenness of the shock, and the appearance of a turbid, rapid river—sweeping down trees, brushwood, branches, hay, corn, and straw before it, with resistless force—was so foreign to my idea of the calm, peaceful Clyde, that when I rose to the surface, I was quite bewildered, and had very serious doubts as to my own identity.

I was roused from this state of bewilderment by the snorting and splashing of the horse: he was making a bold attempt to scale the perpendicular bank. Had I been thrown into the body of the stream, I should have been swept away, and the animal must have perished; but in all heavy rapid runs of water, salt or fresh, there is what is termed an eddy stream, running close inshore, in a contrary direction to the main body of the water. I have seen Highlanders in their boats catching fish in the eddy stream of the Gulf of Corrievrekin, within a short distance of the main tide, which, had it but got the slightest hold on their boat, would have swept them with fearful velocity into the jaws of the roaring gulf. I was caught by this eddy, which kept me stationary, and enabled me, by a few strokes, to reach the horse's side. To cross the river, or to land here, was alike impossible; so I took the reins in my right hand, wheeled the horse from the bank, and dashed at once with him into the strength of the current. Away we went, Satan and I, in capital spirits both; not a doubt of our effecting a safe landing ever crossing my mind. And the horse evinced his certainty upon that subject, by snatching a bite out of a heap of hay that floated at his side, and eating it as composedly as if he had been in the stable.

We soon swept round the high bank that had caused our misfortune, and came to a level part of the country, which was flooded far up into the fields. I then struck strongly out in a slanting direction for the shore, and soon had the satisfaction of finding myself once more upon the green turf. Satan shook himself, pricked up his ears, and gave a low neigh. I then stroked

him, and spoke kindly to him. He returned the caress by licking my hand. Poor fellow! he had contracted a friendship for me in the water—a friendship which terminated only with his life; and which was rendered the more valuable, by his never extending it to another living thing.

---

# THE GOLD-FEVER IN AUSTRALIA.

[Return to Table of Contents](#)

The discovery of gold in the new continent has thrown the country into a state which well merits examination. The same circumstance in California was no interruption to progress of any kind. It merely peopled a desert, and opened a trade where there was none before; while in Australia it finds an established form of civilisation, and a commerce flowing in recognised channels. It is an interesting task, therefore, to trace the nature of the influence exercised in the latter country over old pursuits by the new direction of industry; and it is with some curiosity we open a mercantile circular, dated Sydney, 1st November 1851. This, we admit, is a somewhat forbidding document to mere literary readers; but we shall divest its contents of their technical form, and endeavour, by their aid, to arrive at some general idea of the real state and prospects of the colony.

Up to the middle of last May, the colonial heart beat high with hope. Trade was good; the pastoral interests were flourishing; the country properties, as a matter of course, were improving; and the introduction of the alpaca, the extended culture of the vine, and the growth of cotton, appeared to present new and rich sources of wealth. At that moment came the discovery of the Gold Fields; and a shock was communicated to the whole industrial system, which to some people seemed to threaten almost annihilation. The idea was, that gold-digging would swallow up all other pursuits, and the flocks perish in the wilderness from the want of shepherds. Nor was this altogether without foundation; for the stockholders have actually been considerable sufferers: all the industrial projects mentioned have been stopped short; and the gold-diggings still continue to attract to themselves, as if by a spell, the labour of the country. The panic, however, has now subsided. It is seen that the result is not so bad as was anticipated, and hopes are entertained that the evil will go no further. A stream of population, it is thought, will be directed to Australia from abroad, and the labour not demanded by gold may suffice for other pursuits. Up to the date of the circular, the value of gold shipped for England from New South Wales had been L. 217,000, and it was

supposed that about L. 130,000 more remained at Sydney and in the hands of the miners: 10,000 persons were actually engaged in mining, and 5000 more concerned otherwise in the business; and as the result of the exertions of that multitude, the amount of gold fixed arbitrarily for exportation during the next twelve months, is L. 2,000,000.

But, on the other hand, in the Sydney district alone, the trade in wool has already fallen off to the extent of several thousand bales—a deficiency, however, not as yet attributed to the diminished number of the sheep. It is supposed that the high rates of labour will operate chiefly in disinclining the farmers to extend their operations; and if this at the same time affords them leisure and motive to attend better to the state of their clips, it will ultimately have an effect rather beneficial than otherwise. Australian wool has hitherto been attainable by foreigners only in the English market; but it is a favourable symptom that two cargoes left Sydney last year direct for Hamburg. To shew the falling off in trade during the gold year, it may be mentioned that the exports of wool in the two previous years were about 52,000 bales; and in 1850-1, about 48,000. There was likewise a deficiency of about 6000 casks of tallow, and 3000 hides.

It is interesting to notice, that preserved meats are sent from New South Wales to the neighbouring colonies and to England in considerable quantities. Timber for shipbuilding is rising in estimation in the English market. Australian wines are said to be fully equal to Rhenish; and a Vineyard Association has been formed for the purpose of improvement. Wool, however, is at present the great staple; and the Circular seems to derive some consolation from the idea, that if the crop should continue deficient, prices in England will probably be maintained. 'To anticipate the future prices for our staples,' it says, 'in a market open to so many influences as that of Great Britain, is almost impossible; but it may be well to point out the causes which are likely to affect their value—we allude more especially to wool. We have stated that the production thereof, in New South Wales, is likely to be checked by the attraction of the gold-diggings; and still further, by the gradual abandonment of indifferent or limited runs, which formerly supported a large number of sheep, but which will not pay to work at present prices of wool and labour. Therefore, if we bear in mind that Australia has furnished half of the entire quantity of the wools imported

into Great Britain, and that the English buyers have hitherto been purchasing in anticipation of a large annual increase from hence, which for the present, at anyrate, will not be forthcoming, we think we need be under no apprehension of lower prices than the present.'

It will be remarked, that this somewhat unfavourable report is made at the end of the first six months of the gold-fever. That kind of gold-seeking, however, which unsettles the habits of a population, and represses the other pursuits of industry, is not likely to endure very long in any country. It must give way in time to scientific mining, which is as legitimate a business as any other, and which, by the wealth it circulates, will tempt men into new avenues of industry, and recruit, to any extent that may be desirable, the supply of labour. Hitherto that supply has come in inadequate quantities, or from polluted sources; but we have now precisely what the colony wanted—a stream of voluntary emigration, which, in the process of time, when skilled labour only can be employed, will flood the diggings, and its superfluous portions find their level in the other employments afforded by the country. That this will take place without the inconvenience of a transition period, is not to be expected; but, upon the whole, we look upon the present depression of the legitimate trade of the colony as merely a temporary evil, arising out of circumstances that are destined to work well for its eventual prosperity.

The same process, it should be observed, has already been gone through in California. The lawless adventurers who rushed to the gold-fields from all parts of the world subsided gradually into order from mere motives of self-preservation; and as the precious metal disappeared from the surface, multitudes were driven by necessity or policy into employments more remunerative than digging. The large mining population—the producers of gold—became the consumers of goods; markets of all kinds were opened for their supply; emporia of trade rose along the coast; and a country that so recently was almost a desert, now promises to become one of the great marts of the commerce of the world. If this has been the case in California, the process will be much easier in Australia, where the rudiments of various businesses already exist, and where the staple articles of produce are such as can hardly be pushed to a superfluous extent.



The true calamity, however, under which the fixed colonists, the producers of the staples, suppose themselves to suffer, is the change occasioned in the price of labour by the golden prospects of the diggings. On this question there is always considered to be two antagonistical interests—that of the employers, and that of the employed; the former contending for the minimum, and the latter for the maximum rate. But this is a fallacy. The interest of the two is identical; and for these obvious reasons, that if wages be too high, the capitalist must cease to produce and to employ; and if too low, the working population must sink to the position of unskilled labourers at home, and eventually bring about that very state of society from which emigration is sought as an escape. In supposing their interests to be antagonistical, the one party reasons as badly as the other; but, somehow, there always attaches to the bad reasoning of the employed a stigma of criminality, from which that of the other is free. This is unjust enough in England, but in Australia it is ridiculous. A capitalist goes out, provided with a sum so small as to be altogether useless at home as a means of permanent support, but which, in the colony, he expects, with proper management, to place him for the rest of his life in a position of almost fabulous prosperity. These cheering views, however, he confines to his own class. The measure of his happiness will not be full unless he can find cheap labour, as well as magnificent returns. For this desideratum he will make any sacrifice. He will take your paupers, your felons—your rattlesnakes; anything in the shape of a drudge, who will toil for mere subsistence, and without one of the social compensations which render toil in England almost endurable.

We are never sorry to hear of the high price of labour in countries where the employers live in ease and independence; and we join heartily in the counsel to the higher class of working-men in this country given by Mr Burton in his *Emigrants Manual*—'never to confound a large labour-market with good sources of employment.' It does not appear to us to be one of the least of the benefits that will accrue after convalescence from the gold-fever in Australia, the higher value the employed will set upon their labour. We cannot reason from the English standard, which has not been deliberately fixed, but forced upon us by competition, excessive population, public burdens, and the necessities of social position. In a new country, however, where all these circumstances are absent, and whither employers and

employed resort alike for the purpose of bettering their condition, we should like to see traditions cast aside, and the fabric of society erected on a new basis.

---

## BURGOMASTER LAW IN PRUSSIA.

[Return to Table of Contents](#)

On turning out, and then turning over, a mass of old papers which had lain packed up in a heavy mail-trunk for a period of more than forty years, I came the other day upon a little bundle of documents in legal German manuscript, the sight of which set me, old as I am, a laughing involuntarily, and brought back in full force to my memory the circumstances which I am about briefly to relate. A strange thing is this memory, by the way, and strangely moved by trifles to the exercise of its marvellous power. For more than thirty years—for the average period that suffices to change the generation of man upon earth—had this preposterous adventure, and everything connected with it, lain dormant in some sealed-up cavity of my brain, when the bare sight of the little bundle of small-sized German foolscap, with its ragged edges and blotted official pages, has set the whole paltry drama, with all its dignified performers, in motion before the retina of my mind's eye with all the reality of the actual occurrence.

It was in the spring or early summer of the year 1806, that, in the capacity of companion and interpreter to a young nobleman who was making the tour of Germany, I was travelling on the high-road from Magdeburg to Berlin. We rolled along in a stout English carriage drawn by German post-horses, and having left Magdeburg after an early breakfast, stopped at a small neat town, some eighteen or twenty miles on our route—my patron intending to remain there for an hour or two, in the hope of being rejoined by a friend who had promised to overtake us. He ordered refreshment, and sat down and partook of it, while I, not choosing to participate, seated myself in the recess of an old-fashioned window, and kept my eyes fixed upon our travelling-carriage, from which the wearied horses had been removed, and which stood but a few paces from where I sat. At the end of an hour, my patron having satisfied his appetite, declined to wait any longer, and proposed that we should proceed on our journey. It was my office to discharge all accounts, and of course to check any attempt at speculation which might be made. I summoned the innkeeper, whose just

demand was soon paid, and ordered the horses to be put to. This was done in a few minutes, and the stable-man, as we walked out to the carriage, came forward and presented his little bill. As I ran it hastily over before paying it, I saw that the rascal had charged for services which he had not rendered. With the design of making the most of a chance-customer, he had put down in his account a charge for greasing the wheels of the carriage. Now, as I had never taken my eyes from the carriage during the whole period of our stay, I could not be deceived in the conviction that this was a fraud. True, it was the merest trifle in the world; but the fellow who wanted to exact it was the model of an ugly, impudent, and barefaced rogue, and therefore I resolved not to pay him. Throwing him the money, minus the attempted imposition, I told him to consider himself fortunate that he had got that, which was more than such a rogue-*schurke* was the word I used—deserved.

'Do you call me a rogue?' said he.

'Certainly; a rogue is your right name,' I replied, and sprang into the carriage.

'Ho! ho!' said he; 'that is against the law. Hans Felder,' he bawled to the postilion, 'I charge you not to move; the horses may be led back to the stable: the gracious gentleman has called me a rogue. Stiefel, run for the police: the gracious gentleman says I am a rogue. I will cite him before the council.'

It was in vain that I put my head out of the window, and bawled to the postilion to proceed. He was evidently afraid to move. In a few minutes a crowd began to collect around us, and in less than a quarter of an hour half the inhabitants of the place had assembled in front of the inn. The noise of a perfect Babel succeeded in an instant to the dull silence of the quiet town. I soon gathered from the vehement disputes that arose on all sides, that the populace were about equally divided into two parties. The more reasonable portion were for allowing us to proceed on our journey, and this would perhaps have been permitted, had not my companion, on understanding what was the matter, burst into an uncontrollable fit of laughter, and repeated the offensive word, accompanying it with a declaration in French, which many of the bystanders understood, that he considered it generally

applicable. The landlord of the inn now came forth, and after a not very energetic attempt to conciliate the ostler, who refused to forego his determination to obtain legal redress, invited us to alight and resume our quarters in the inn. This we were compelled to do, to escape the annoyance of the crowd; and the carriage being housed under a shed, the horses returned to the stable. We had not been three minutes in the inn before the police appeared to take me into custody, and march me off to *durance vile*. By this time I began to see that the charge, and the dilemma into which it had led us, was no joke. I might perhaps have bribed the scoundrel who preferred it, and have sent away the police with a gratuity; but I felt as little disposed to do that as to go to prison. I refused to leave the inn, protested against the jurisdiction of their absurd laws over strangers, and at length, with the assistance of my companion, and a good deal of threatening talk, succeeded in ejecting the two police functionaries from the room. They kept watch, however, at the door, and planted sentinels at the windows, to prevent an ignominious flight that way.

In the meanwhile, the whole town was in commotion, and everybody was hurrying towards the *rathhaus*, or town-hall, where it was plain enough that preparations were making for putting me immediately upon my trial. I saw the old *bürgermeister* go waddling by in his robe of office, accompanied by a crowd of nondescript officials, with one of whom my villainous-looking adversary was in close confabulation. In a short space of time, a band of very scurvy-looking police, plainly vamped up for the occasion, made its appearance; and one of the band entering the room without ceremony, presented me with a summons, couched in legal diction, citing me to appear instantly before the commission then sitting, to answer an indictment preferred against me by Karl Gurtler, Supernumerary Deputy Road Inspector of the district, whose honourable character I had unjustly and wantonly assailed and deteriorated by the application of the scandalous and defamatory term, *schurke*. There was nothing for it but to obey the mandate; and accordingly, requesting the bearer to convey my compliments to the assembled council, and to say that I would have the honour of attending them in a few minutes, I dismissed him, evidently soothed with my courteous reception. I did this with a view of getting rid of the *posse comitatus*, in whose company I did not much relish the idea of being escorted as a prisoner. My politeness, however, had not the anticipated

effect, as, upon emerging from the inn, we found the whole squad waiting at the door as a sort of body-guard, to make sure of our attendance.

On arriving at the rathhaus, which was crammed to overflowing with all the inhabitants of the place who could possibly wedge themselves into it, way was cleared for us through the crowd to the seats which had been considerately allotted for us, in front of the tribunal. A more extraordinary bench of justice was perhaps never convened. It was plain that the little village was steeped in poverty to the lips, and that I, having been entrapped, through an unconscious expression, in the meshes of some antiquated law, was doomed to administer in some measure to their need by the payment of a penalty and costs. The fat old fellow who presided as judge, and beneath whose robe of office an unctuous leathery surtout was all too visible, peered in vain through a pair of massive horn-spectacles into a huge timber-swathed volume in search of the act, the provisions of which I had violated. At length, the schoolmaster—a meagre, pensive-looking scarecrow, industriously patched all over—came to his assistance, turned over the ponderous code by which the little community were governed, and having rummaged out the law, and the clause under the provisions of which I had been so summarily arrested, handed it to the clerk, who I shrewdly suspected to be nothing more or less than the village barber. He, at the command of the judge, read it aloud for the information of all present, and for my especial admonition. From the contents, it appeared to have been decreed, how long ago I had no means of judging, that, for the better sustentation of good morals and good-breeding, and for the prevention of quarrelling, or unseemly and abusive conversation, any person who should call or designate any other person in the said town by the name of thief, villain, rascal, rogue (schurke), cheat, charlatan, impostor, wretch, coward, sneak, suborner, slanderer, tattler, and sundry other titles of ill-repute, which I cannot recollect now, and could not render into English were I to recall them, should, upon complaint of the person aggrieved, and upon proof of the offence by the evidence of worthy and truth-speaking witnesses, be amerced in such penalty, not exceeding a certain sum, as in the estimation of the presiding magistrate should be held to be a proper compensation for the injury to his reputation suffered by the plaintiff. When the clerk drew breath at the end of the long-winded clause, I inquired if the law in question made no counter-provision for cases which might occur where, the abusive

term being richly deserved, it could be no crime to apply it. The schoolmaster, who, despite his patched habiliments, was a clever fellow, at once answered my question in the negative, and justified the omission of any such provision by contraverting the position I had advanced upon moral grounds. This he did in a speech of some length, and with remarkable ingenuity and good sense; proving—to the satisfaction of his fellow-townsmen at least—that to taunt a malefactor openly with his misdeeds, was not the way to reform him, while it was a sure mode of producing a contrary result; and winding up with an assurance, that the law was a good law, and perfect in all its parts; and that if I had suffered wrong, I might obtain at their hands redress as readily and with as much facility as my antagonist.

I had nothing to reply to this, and the proceedings went on in due form. Without being sworn, the plaintiff was called upon to state his case, which he did with an elaborate circumlocution altogether without a parallel in my experience. He detailed the whole history of his life—from his birth, in Wolfenbüttel, up to his seven years' service in the army; then followed his whole military career; and after that, his service under the *weg*-inspector, which was rewarded at length by the gratification of his honest ambition, in his appointment as supernumerary deputy road inspector of the district. He enlarged upon the service he had rendered to, and the honours he had received from, his country; and then put it to his judges to decide whether, as a public officer, a soldier, and a man of honour, he could submit to be stigmatised as a *schurke*, without appealing to the laws of his Fatherland to vindicate his character. Of course it was not to be thought of. He then detailed the circumstances of the assault I had made upon his character, forgetting to mention, however, the provocation he had given by the fraudulent charge for greasing. Having finished his peroration, he proceeded to call witnesses to the fact of the abuse, and cited Hans Felder, our postilion, to be first examined. Hans, who had heard every syllable that passed, was not, however, so manageable a subject as the plaintiff expected to find him. Whether, like Toby Allspice in the play, he 'made it a rule never to disoblige a customer;' or whether, which was not unlikely, he owed Karl Gurtler a grudge, either for stopping him on his route, or for some previous disagreement with that conscientious public functionary; or whether, which was likeliest of all, he feared to compromise his claim for *trinkgeld* from

the highborn, gracious gentlemen he had the honour of driving, I cannot pretend to determine. Certain it is, that when brought to the bar, he had heard nothing, and seen nothing, and knew nothing, and could recollect nothing, and say nothing, about the business in hand; and nothing but nothing could be got out of him by a single member of the bench, though all took him in hand by turns. He was finally sent down. By this time, so dilatory had been the proceedings, the sun was sinking in the west. My companion, weary of the prosecutor's long story, had withdrawn to the inn to order dinner. As the second witness was about to give his testimony, a note was handed to the old burgermeister, who, having given it a glance, immediately adjourned the court till the next morning at nine o'clock. The assembly broke up, and, returning to the inn, I found that the proceedings had been stopped by the landlord, to save the reputation of his cookery, which would have been endangered had the dinner waited much longer. Having first consulted my fellow-traveller, he had despatched directions to the judge to adjourn the case till the morrow, who, like a good and obliging neighbour, had accordingly done so.

The little town was unusually alive and excited that evening. Karl Gurtler was the centre of an admiring circle, who soon enveloped him in the incense of their meerschauts. He held a large levée in the common room of the inn, where a succession of very terrific battle-songs kept us up to a late hour, as it was of no use to think of slumber during their explosion. The next morning, at the appointed hour, the proceedings recommenced, and the remainder of the witnesses were examined at full length. It was in vain that I offered to plead guilty, and pay the penalty, whatever it might be, so that we might be allowed to proceed on our journey. I was solemnly reminded, that it was not for me to interrupt the course of justice, but to await its decision with patience. I saw they were determined to prevent our departure as long as possible; and, judging that the only way to assist in the completion of the unlucky business, was to interpose no obstacle to its natural course, I henceforth held my peace, conjuring my companion on no account to give directions for dinner. After a sitting of nearly seven hours on the second day, when everything that could be lugged into connection with the silly affair had been said and reiterated ten times over, the notary in attendance read over his condensed report of the whole, and I was called upon for my defence. I told them plainly that I did not choose to make any;



that I was sick of the company of fools; that since it was a crime to speak the truth in their good town, I was willing to pay the penalty for so doing, for the privilege of leaving it; that I was astonished and disgusted at the spectacle of a company of grave men siding with such a beggarly *räuber* (I believed that term was not proscribed in their precious statute) as Karl Gurtler was, and taking advantage of the law, of which a stranger must necessarily be ignorant, to obstruct him on his journey, and levy a contribution on his purse; and I added, finally, for I had talked myself into an angry mood, that if the farce were not immediately brought to a conclusion, I should despatch my friend forthwith to Berlin, and lay a report of their proceedings before the British ambassador. I could perceive something like consternation in the broad visage of the burgermeister as I concluded my harangue; but without attempting to answer it, the Solons on the bench laid their heads together, and after a muttering of a few minutes' duration, the schoolmaster pronounced the sentence of the court, which was, that I should indemnify the plaintiff to the amount of one dollar, and pay the costs of the proceedings, which amounted to three more. I could scarce forbear laughing at the mention of a sum so ludicrous. Fifteen shillings for penalty and costs of a trial which had lasted nearly two days! I threw down the money, and was hastening from the court, when the notary called upon me to stop for one moment, while he concluded his report of the case, to which, it appeared, their laws gave me a valid claim. I took the papers, and crammed them into my valise, in the hasty packing which took place so soon as I got back to my companion. In a quarter of an hour, we were on our road towards Berlin, having been taught a lesson of politeness, even towards rogues, at the expense of a stoppage of more than thirty hours on our route. I have no recollection how the papers found their way into the old trunk from which they were lately unkennelled. They are now before me, and consist of nearly fifty sides of small foolscap, written in a bold legal hand, affording a unique specimen of the cheapness of law amongst a community who, it is to be supposed, had but little demand for it.

A few short months after this event, and the little town where it took place had something else to think of. The ill-advised step of the Prussian government, who, relying upon the aid of Russia, declared war against Napoleon, brought the devastating hordes of republican France among them. The battle of Jena placed the whole kingdom at the foot of the

conqueror; and few towns suffered more, comparatively, than the little burgh which, by the decree of a very doubtful sort of justice, had mulcted me in penalties for calling a very ill-favoured rogue by his right name.

---

# TRACES OF THE DANES AND NORWEGIANS IN ENGLAND.

[Return to Table of Contents](#)

Mr J. J. A. Worsaae, a conspicuous member of that brilliant corps of northern antiquaries who have of late given a new wing to history, travelled through the United Kingdom in 1846-7, on a commission from his sovereign the king of Denmark, to make inquiry respecting the monuments and memorials of the Danes and Norwegians, which might still be extant in these islands. The result of his investigations appeared in a concise volume, which has been translated into English, and published by Mr Murray in a handsome style, being illustrated by numerous wood-cuts.<sup>[4]</sup> It is a work which we would recommend to the attention of all who feel any interest in our early history, as calculated to afford them a great gratification. One is surprised to find in how great a degree the Northmen affected Britain; what an infusion of Scandinavian blood there is in our population; how many traces of their predominancy survive in names of places and in more tangible monuments. Mr Worsaae writes with a warm feeling towards his country and her historical reminiscences, but without allowing it to carry him into any extravagances. He is everywhere clear and simple—sometimes rises into eloquence; and always displays a close and searching knowledge of his subject.

From the end of the eighth century till the time of the Norman Conquest, the restless chiefs of Denmark and Norway were continually in the practice of making piratical expeditions to our shores. They committed terrible devastations, and made many settlements, almost exclusively on the eastern coast. Finally, as is well known, we had a brief succession of Danish kings in England, including the magnanimous Canute. When we look at the quiet people now inhabiting Denmark and Norway, we are at a loss to understand whence came or where resided that spirit of reckless daring which inspired such a system of conquest, or how it came so completely to die out; but the explanation is, that the Northmen of those days were heathens, animated by

a religion which made them utterly indifferent to danger. Whenever they became Christianised, they began to appreciate life like other men, and ceased, of course, to be the troublers they had once been. Mr Worsaae draws a line from London to Chester—the line of the great Roman road (Watling Street)—to the north of which the infusion of Scandinavian population is strong, and their monuments abundant. A vast number of names of places in that part of the island are of Danish origin—all ending in *by*, which in Danish signifies a town, as Whitby (the White Town), Derby (Deoraby, the town of Deer), Kirby (the church town), &c.—all ending in *thwaite*, which signifies an isolated piece of land—all ending in *thorpe* (Old Northern, a collection of houses separated from some principal estate)—all ending in *næs*, a promontory, and *ey* or *öe*, an island. *Toft*, a field; *with*, a forest; *beck*, a streamlet; *tarn*, a mountain-lake; *force*, a waterfall; *garth*, a large farm; *dale*, a valley; and *fell*, a mountain, are all of them common elements of names of places in England, north of the line above indicated, and all are Scandinavian terms. The terminations *by*, *thwaite*, and *thorpe*, are still common in Denmark.

Mr Worsaae found many memorials of the Northmen in London: for example, the church of St Clement's Danes, where this people had their burial-place; the name *Southwark*, which is 'unmistakably of Danish or Norwegian origin;' St Olave's Church there, and even Tooley Street, which is a corruption of the name of that celebrated Norsk saint; but, above all, in the fact that 'the highest tribunal in the city has retained in our day its pure old northern name "Husting."' The fact is, that about the time of Canute, the Danes predominated over the rest of the population of London. Mr Worsaae was not able to trace the Danish face or form as a distinct element in the modern population. In going northward, however, he soon began to find that the prevailing physiognomy was of a northern character: 'The form of the face is broader, the cheek-bones project a little, the nose is somewhat flatter, and at times turned a little upwards; the eyes and hair are of a lighter colour, and even deep-red hair is far from being uncommon. The people are not very tall in stature, but usually more compact and strongly built than their countrymen towards the south. The Englishman himself seems to acknowledge that a difference is to be found in the appearance of the inhabitants of the northern and southern counties; at least, one constantly hears in England, when red-haired, compact-built men with broad faces are

spoken of: "They must certainly be from Yorkshire;" a sort of admission that light hair, and the broad peculiar form of the face, belong mostly to the north of England people.... In the midland, and especially in the northern part of England, I saw every moment, and particularly in the rural districts, faces exactly resembling those at home. Had I met the same persons in Denmark or Norway, it would never have entered my mind that they were foreigners. Now and then I also met with some whose taller growth and sharper features reminded me of the inhabitants of South Jutland, or Sleswick, and particularly of Angeln; districts of Denmark which first sent colonists to England. It is not easy to describe peculiarities which can be appreciated in all their details only by the eye; nor dare I implicitly conclude that in the above-named cases I have really met with persons descended in a direct line from the old Northmen. I adduce it only as a striking fact, which will not escape the attention of at least any observant Scandinavian traveller, that the inhabitants of the north of England bear, on the whole, more than those of any other part of that country, an unmistakable personal resemblance to the Danes and Norwegians.'

Scandinavian words abound in the popular language of those districts. 'On entering a house there, one will find the housewife sitting with her *rock* (Dan., *Rok*; Eng., a distaff) and *spoele* (Dan., *Spole*; Eng., spool, a small wheel on the spindle); or else she has set both her *rock* and her *garnwindle* (Dan., *Garnvinde*; Eng., reel or yarn-winder) aside, whilst standing by her *back-bword* (Dan., *Bagebord*; Eng., baking-board) she is about to knead dough (Dan., *Deig*), in order to make the oaten-bread commonly used in these parts, at times, also, barley-bread; for *clap-bread* (Dan., *Klappebröd*, or thin cakes beaten out with the hand), she lays the dough on the *clap-board* (Dan., *Klappebord*.) One will also find the *bord-claith* spread (Dan., *Bordklæde*; Eng. table-cloth); the people of the house then sit on the *bank* or *bink* (Dan., *Bænk*; Eng., bench), and eat *Aandorn* (Eng., afternoon's repast), or, as it is called in Jutland and Fünen, *Onden* (dinner.) The chimney (*lovver*) stands in the room; which name may perhaps be connected with the Scandinavian *lyre* (Icelandic, *ljóri*)—namely, the smoke-hole in the roof or thatch (*thack*), out of which, in olden times, before houses had regular chimneys and "lofts" (Dan., *Loft*; Eng., roof, an upper room), the smoke (*reek* or *reik*, Dan., *Rög*) left the dark (*mirk* or *murk*, Dan., *Mörk*) room. Within is the *bower* or *boor* (Eng., bed-chamber), in Danish, *Buur*; as, for

instance, in the old Danish word *Jomfrubuur* (the maiden's chamber), and in the modern word *Fadebuur* (the pantry.)'

Mr Worsaae only speaks the truth when he remarks how the name of the Danes has been impressed on the English mind. 'Legends about the Danes are,' he says, 'very much disseminated among the people, even in the south of England. There is scarce a parish that has not in some way or another preserved the remembrance of them. Sometimes, they are recorded to have burned churches and castles, and to have destroyed towns, whose inhabitants were put to the sword; sometimes, they are said to have burned or cut down forests; here are shewn the remains of large earthen mounds and fortifications which they erected; there, again, places are pointed out where bloody battles were fought with them. To this must be added the names of places—as, the *Danes-walls*, the *Danish forts*, the *Dane-field*, the *Dane-forest*, the *Danes-banks*, and many others of the like kind. Traces of Danish castles and ramparts are not only found in the southern and south-eastern parts of England, but also quite in the south-west, in Devonshire and Cornwall, where, under the name of *Castelton Danis*, they are particularly found on the sea-coast. In the chalk-cliffs, near Uffington, in Berkshire, is carved an enormous figure of a horse, more than 300 feet in length; which, the common people say, was executed in commemoration of a victory that King Alfred gained over the Danes in that neighbourhood. On the heights, near Eddington, were shewn not long since the intrenchments, which, it was asserted, the Danes had thrown up in the battle with Alfred. On the plain near Ashdon, in Essex, where it was formerly thought that the battle of Ashingdon had taken place, are to be seen some large Danish barrows which were long, but erroneously, said to contain the bones of the Danes who had fallen in it. The so-called dwarf-alder (*Sambucus ebulus*), which has red buds, and bears red berries, is said in England to have germinated from the blood of the fallen Danes, and is therefore also called *Daneblood* and *Danewort*. It flourishes principally in the neighbourhood of Warwick; where it is said to have sprung from, and been dyed by, the blood shed there, when Canute the Great took and destroyed the town.

'Monuments, the origin of which is in reality unknown, are, in the popular traditions, almost constantly attributed to the Danes. If the spade or the plough brings ancient arms and pieces of armour to light, it is rare that the

labourer does not suppose them to have belonged to that people. But particularly if bones or joints of unusual size are found, they are at once concluded to be the remains of the gigantic Danes, whose immense bodily strength and never-failing courage had so often inspired their forefathers with terror. For though the Englishman has stories about the cruelties of the ancient Danes, their barbarousness, their love of drinking, and other vices, he has still preserved no slight degree of respect for Danish bravery and Danish achievements. "As brave as a Dane," is said to have been an old phrase in England; just as "to strike like a Dane" was, not long since, a proverb at Rome. Even in our days, Englishmen readily acknowledge that the Danes are the "best sailors on the continent;" nay, even that, themselves of course excepted, they are "the best and bravest sailors in all the world." It is, therefore, doubly natural that English legends should dwell with singular partiality on the memorials of the Danes' overthrow. Even the popular ballads revived and glorified the victories of the English. Down to the very latest times was heard in Holmesdale, in Surrey, on the borders of Kent, a song about a battle which the Danes had lost there in the tenth century.'

In our own northern land, the Northmen committed as many devastations, and made nearly as many settlements, as in England. The Orcadian Islands formed, indeed, a Norwegian kingdom, which was not entirely at an end till the thirteenth century. In that group, and on the adjacent coasts of Caithness and Sutherlandshires, the appearance of the people, the names of places, and the tangible monuments, speak strongly of a Scandinavian infusion into the population. Sometimes, between the early Celtic people still speaking their own language, and the descendants of the Norwegians, a surprisingly definite line can be drawn. The island of Harris is possessed for the most part by a set of Celts, 'small, dark-haired, and in general very ugly;' but at the northern point, called 'the Ness,' we meet with people of an entirely different appearance. 'Both the men and women have, in general, lighter hair, taller figures, and far handsomer features. I visited several of their cabins, and found myself surrounded by physiognomies so Norwegian, that I could have fancied myself in Scandinavia itself, if the Gaelic language now spoken by the people, and their wretched dwellings, had not reminded me that I was in one of those poor districts in the north-west of Europe where the Gaels or Celts are still allowed a scanty existence. The houses, as in Shetland, and partly in Orkney, are built of turf and unhewn stones, with

a wretched straw or heather roof, held together by ropes laid across the ridge of the house, and fastened with stones at the ends. The houses are so low, that one may often see the children lie playing on the side of the roof. The family and the cattle dwell in the same apartment, and the fire, burning freely on the floor, fills the house with a thick smoke, which slowly finds its way out of the hole in the roof. The sleeping-places are, as usual, holes in the side-walls.

'It is but a little while ago that the inhabitants of the Ness, who are said to have preserved faint traditions of their origin from Lochlin—called also in Ireland, Lochlan—or the North, regarded themselves as being of better descent than their neighbours the Gaels. The descendants of the Norwegians seldom or never contracted marriage with natives of a more southern part of the island, but formed among themselves a separate community, distinguished even by a peculiar costume, entirely different from the Highland Scotch dress. Although the inhabitants of Ness are now, for the most part, clothed like the rest of the people of Lewis, I was fortunate enough to see the dress of an old man of that district, which had been preserved as a curiosity. It was of thick, coarse woollen stuff, of a brown colour, and consisted of a close-fitting jacket, sewn in one piece, with a pair of short trousers, reaching only a little below the knees. It was formerly customary with them not to cover the head at all.'

The people of the Ness are described as good fishermen—a striking trait of their original national character, for nothing could distinguish them more from their neighbours, the ordinary Highlanders being everywhere remarkable for their inaptitude to a sea-life.

Tradition speaks loudly all over Scotland of the ancient doings of the Danes. So much, indeed, is this the case, that every antiquity which cannot be ascribed to the Romans, is popularly thought to be Danish, an idea which has been implicitly adopted by a great number of the Scotch clergy in the Statistical Account of their respective parishes. In the Highlands, Mr Worsaae found the people retaining a very fresh recollection of the terrors of the Northmen, and ready to believe that their incursions might yet be renewed. 'Having employed myself,' he says, 'in examining, among other things, the many so-called "Danish" or Pictish towers on the west and



north-west coast of Sutherland, the common people were led to believe, that the Danes wished to regain possession of the country, and with that view intended to rebuild the ruined castles on the coasts. The report spread very rapidly, and was soon magnified into the news, that the Danish fleet was lying outside the sunken rocks near the shore, and that I was merely sent beforehand to survey the country round about; nay, that I was actually the Danish king's son himself, and had secretly landed. This report, which preceded me very rapidly, had, among other effects, that of making the poorer classes avoid, with the greatest care, mentioning any traditions connected with defeats of the Danes, and especially with the killing of any Dane in the district, lest they should occasion a sanguinary vengeance when the Danish army landed. Their fears were carried so far, that my guide was often stopped by the natives, who earnestly requested him, in Gaelic, not to lend a helping-hand to the enemies of the country by shewing them the way; nor would they let him go, till he distinctly assured them that I was in possession of maps correctly indicating old castles in the district which he himself had not previously known. This, of course, did not contribute to allay their fears; and it is literally true, that in several of the Gaelic villages, particularly near the firths of Loch Inver and Kyle-Sku, we saw on our departure old folks wring their hands in despair at the thought of the terrible misfortunes which the Danes would now bring on their hitherto peaceful country.'

We have here been obliged wholly to overlook Mr Worsaae's curious chapters about Ireland and the Isle of Man, and to give what we cannot but feel to be a very superficial view of the contents of his book generally; but our readers have seen enough to inspire them with an interest in it, and we trust that this will lead many of them to its entire perusal.

## FOOTNOTES:

[4] *An Account of the Danes and Norwegians in England, Scotland, and Ireland.*  
By J. J. A. Worsaae, For. F. S. A., London; Author of *Primæval Antiquities of Denmark*. London: Murray. 1852.

---

## CHILDREN OF PRISONS.

[Return to Table of Contents](#)

When I was in Berlin, I went into the public prison, and visited every part of the establishment. At last I was introduced to a very large hall, which was full of children, with their books and teachers, and having the appearance of a Prussian school-room. 'What!' said I, 'is it possible that all these children are imprisoned here for crime?' 'O no,' said my conductor, smiling at my simplicity; 'but if a parent is imprisoned for crime, and on that account his children are left destitute of the means of education, and are liable to grow up in ignorance and crime, the government places them here, and maintains and educates them for useful employment.' This was a new idea to me. I know not that it has ever been suggested in the United States; but surely it is the duty of government, as well as its highest interest, when a man is paying the penalties of his crime in a public prison, to see that his unoffending children are not left to suffer and inherit their father's vices. Surely it would be better for the child, and cheaper as well as better for the state. Let it not be supposed that a man will go to prison for the sake of having his children taken care of; for those who go to prison, usually have little regard for their children. If they had, *discipline* like that of the Berlin prison would soon sicken them of such a bargain.—*Professor Stowe.*

---

# JUPITER, AN EVENING STAR.

[Return to Table of Contents](#)

Ruler and hero, shining in the west  
    With great bright eye,  
Rain down thy luminous arrows in this breast  
    With influence calm and high,  
And speak to me of many things gone by.

Rememberest thou—'tis years since, wandering star—  
    Those eves in June,  
When thou hung'st quivering o'er the tree-tops far,  
    Where, with discordant tune,  
Many-tongued rooks hailed the red-rising moon?

Some watched thee then with human eyes like mine,  
    Whose boundless gaze  
May now pierce on from orb to orb divine  
    Up to the Triune blaze  
Of glory—nor be dazzled by its rays.

All things they know, whose wisdom seemed obscure;  
    They, sometime blamed,  
Hold our best purities as things impure:  
    Their star-glance downward aimed,  
Makes our most lamp-like deeds grow pale and shamed.

Their star-glance?—What if through those rays there gleam  
    Immortal eyes  
Down to this dark? What if these thoughts, that seem  
    Unbidden to arise,  
Be souls with my soul talking from the skies?

I know not. Yet awhile, and I shall know!—

Thou, to thy place  
Slow journeying back, there startlingly to shew  
Thy orb in liquid space,  
Like a familiar death-lost angel face—

O planet! thou hast blotted out whole years  
Of life's dull round;  
The Abel-voice of heart's-blood and of tears  
Sinks dumb into the ground,  
And the green grass waves on with lulling sound.

---

# GRATUITOUS SERVICES.

[Return to Table of Contents](#)

Never let people work for you *gratis*. Two years ago, a man carried a bundle for us to Boston, and we have been lending him two shillings a week ever since.—*American paper*.

---

Printed and Published by W. and R. CHAMBERS, High Street, Edinburgh. Also sold by W. S. ORR, Amen Corner, London; D. N. CHAMBERS, 55 West Nile Street, Glasgow; and J. M'GLASHAN, 50 Upper Sackville Street, Dublin. —Advertisements for Monthly Parts are requested to be sent to MAXWELL & Co., 31 Nicholas Lane, Lombard Street, London, to whom all applications respecting their insertion must be made.

---

\*\*\* END OF THE PROJECT GUTENBERG EBOOK CHAMBERS'S  
EDINBURGH JOURNAL, NO. 435 \*\*\*

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

# THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at [www.gutenberg.org/license](http://www.gutenberg.org/license).

## **Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works**

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without



paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website ([www.gutenberg.org](http://www.gutenberg.org)), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

## **Section 2. Information about the Mission of Project Gutenberg**

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for

generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at [www.gutenberg.org](http://www.gutenberg.org).

### **Section 3. Information about the Project Gutenberg Literary Archive Foundation**

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at [www.gutenberg.org/contact](http://www.gutenberg.org/contact)

### **Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation**

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these

requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

## **Section 5. General Information About Project Gutenberg electronic works**

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: [www.gutenberg.org](http://www.gutenberg.org).

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation,

how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.